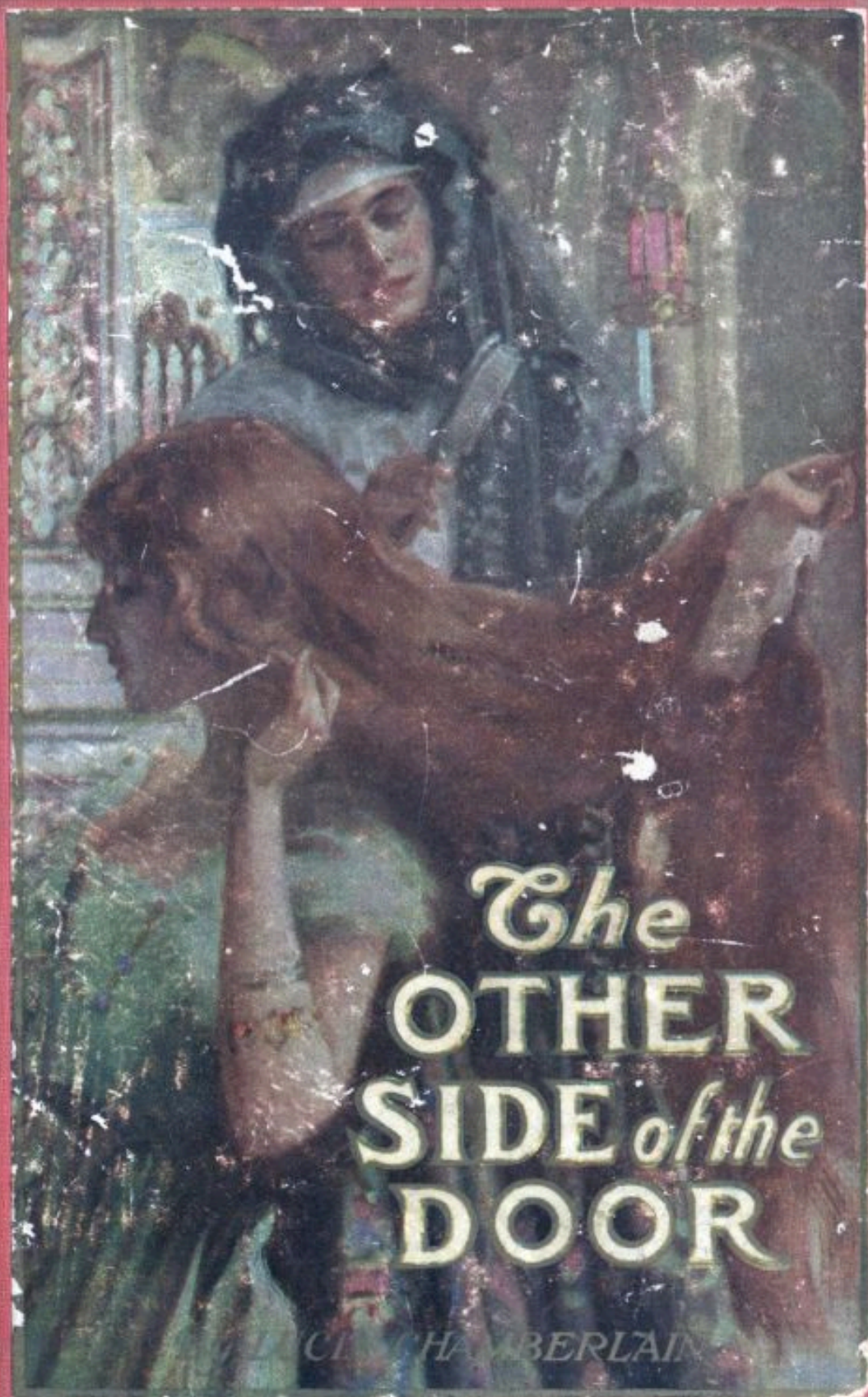


The
OTHER
SIDE *of the*
DOOR

by CLARA CHAMBERLAIN



The
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DOOR

L. C. CHAMBERLAIN

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Cover art



Looking up at her I felt she had won. Page 270

Looking up at her I felt she had won.

THE OTHER SIDE OF THE DOOR

BY

LUCIA CHAMBERLAIN

**Author of
THE COAST OF CHANCE**

**WITH ILLUSTRATIONS BY
HERMAN PFEIFER**

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MAY

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Looking up at her I felt she had won. *Frontispiece*

"What's the matter, child?" father said.

I tried to make myself look as pretty as possible.

[Transcriber's note: A fourth illustration was missing from the book.]

THE OTHER SIDE OF THE DOOR

PROLOGUE

THE CITY

The city is always gray. Even in March, the greenest month of all, when the Presidio, and the Mission Hills, and the islands in the bay are beautiful with spring, there's only such a little bit of green gets into the city! It lies in the lap of five hills, climbing upward toward their crests where the trees are all doubled and bent by the trade-wind. It seems to give its own color to the

growing things in it. The cypress hedges are dusty black; the eucalyptus trees are gray as the house fronts they knock against, and even the plaza grass looks dark and old, as if it had been the same grass always, and never came up new in the spring.

But for the most part there are no trees, and only the finest places have gardens. There are only rows and rows of houses painted gray, with here and there a white one, or a glass conservatory front. But the fog and dust all summer gray these, too, and when the trade-winds blow hard it takes the smoke out over the east bay, and makes that as gray as the city.

And yet the city doesn't look sad. The sky is too blue, and the bay is too blue around it; and the flying fog, and the wind, and the strong tide flowing in and out of the bay are like restless, eager creatures that never sleep or grow tired. When I was a very little child the fierceness of it frightened me. All the noises of the city made one harsh, threatening voice to my ears; and the perilous water encompassing far as eye could reach; and the high hills running up into the sky now blinded by dust, now buried in fog, now drenched in rain, were overpowering and terrifying to me. Beyond that general seeming of terror there is little I remember of the early city, except the glimmer of white tent tops against gray fog or blue water, the loud voices in the streets, and a vague, general impression of rapid and violent changes of place and circumstance. Through their confusion three figures only, move with any clearness,—my tall, teasing, father, my grim nurse Abby, and my pale-haired mother. Indeed, the first distinct incident that stands forth from that dim background is the death of my mother.

It was a puzzle for a child. One day she was there, ill in bed, but visible, palpable, able to speak, to smile, to kiss,—the next, she had disappeared. They said she had gone away, but I knew that was nonsense; for when people went away it was in the daytime with bags and umbrellas, and every one knew they were going, and where they went, but with my mother it was different. One day she was there,—the next she was not, nor in any of the rooms of the house could she be found. It was long before I ceased to expect her back; long before I ceased, by some process of child's reasoning, to blame her departure on the gray unaccountable city. For as early as I can recall a coherent sequence of impressions the city appeared to me strange

and unaccountable. There was a secret shut away from me behind every closed house front; the eucalyptus trees seemed to whisper "mystery" above my head; and at night, when the fog came heaping in, thicker than feather-beds, across the Mission, and streaming down the long hills on the heels of the wind, it brought an army of ghosts to inhabit the dark places beyond the safety of the lighted window-pane. Though I had lived among the seven hills almost all my life; and though in ways it had grown familiar, and even dear to me, yet I never seemed to grow quite used to the city. It had strange tricks of deception that were enough to unsettle the finest faith. For when I looked at it from the windows of my room under the roof it was as flat as a plate, visible in its entirety from end to end, and it was as easy to find Telegraph Hill or the Plaza upon it as it was to pick up a block from the carpet. But, when I went abroad in it, it hid away from me. It would never show me more than one street at a time, and never by any chance would it reveal to me, through the tall houses, in what part of it I was walking.

But by the time I was old enough to play in the garden by myself, and make friends through the hedge with Hallie Ferguson, who lived a block below us, I had come to accept this trick of the city as somewhat less extraordinary. It was developing other characteristics not so fearful to my mind and of far greater fascination; and I spent hours, when I could not be out of doors, watching it from the windows of my room. Father had built what was at the time one of the finest houses in San Francisco. It had a glass conservatory at the side, and a garden with a lawn and palm in the corner; and on rainy nights when the wind was high, and the house was shaking, I could hear the long palm-fingers tap-tapping on my window glass. The house stood half-way up Washington Street Hill, on what was then the western skirts of the city, and from my window under the roof I could look down over the whole city to the east water front, with Rincon Hill misty on the south, and Telegraph bold on the north of it. By leaning far out of the window, as Hallie and I sometimes did when a ship was coming in, we could see northward as far as North Beach, and Alcatraz Island; and from Abby's room across the hall we could continue the panorama around to Russian Hill, whose high crown cut off the Golden Gate. It was a favorite game of ours, hanging out the window, with our heads in the palm leaves, to pretend stories of what we saw going on in the city beneath.

All sorts of strange and interesting things went on in the city. We could see the signals run up on Telegraph Hill when a ship was sighted. And then the "express" would go dashing furiously down some street below us, the pony at gallop; and the line would form in front of the post-office and stretch like a black snake up Washington Street. Or we watched the yellow omnibuses laboring down Washington Street like clumsy beetles. It seemed to me that a city was the most delightful and absorbing plaything a child could have, and it was a hard arbitrary blow of fate that took me from it to the convent school at Santa Clara.

But if to leave the city was hard, it was terrible indeed to leave the house, the familiar rooms, the familiar footsteps and voices that I loved, and listened for. I had never been away from father and Abby in my life, and though Hallie Ferguson and Estrella Mendez went also, I was very homesick.

There was nothing at all interesting at the convent,—nothing but pepper trees, and nun's black hoods, and books. Even when we walked out there were only the dreary Santa Clara flats with the mountains so distant on the horizon that their far-awayness made me want to cry. The only nice thing about the convent was the vacation that took us away from it, back, out of the burning summer valley to the bay, the rows of gray-faced houses, the shipping and the wind. Each time I came back it was with the rapture one must feel returning to some long left, beloved place and finding it unchanged.

The palm, the cypress hedges, the sunny conservatory, the low, long rooms beyond it, the dark hall, and narrow, precipitous stair were always adorably the same. But around them the city was growing with such speed that each time I returned I had to learn to know it afresh. Already there were several blocks of houses beyond ours, and the second year I came home from the convent Hallie Ferguson told me her father was going to move because there was a gambling-house going up across the street from them, "and build," Hallie expressed it, "in a more fashionable neighborhood."

It was at the foot of Chestnut Street Hill their new house was building, and that vacation we used often to walk over with Abby—Estrella, Hallie and I—across the city and across the North Beach district—to play in the

building house. It was going up with the same furious speed that was accomplishing the whole city. It seemed that we had hardly stopped looking through the skeleton supports at the bay before the plaster was drying on the solid walls; that we had hardly ceased walking on the great naked flooring beams before the smooth floor itself was palpitating under the feet of the dancers at the housewarming.

I remember sitting up with Hallie through the earlier part of that evening, and with a sort of worship, looking for the first time at women with uncovered necks and arms emerging white as wax from their diaphanous or glittering gowns. To me they were radiant, transported to a sphere of existence beyond my own, something I never would attain to. I recall them as a vague, dreamlike spectacle. In all of it there is but one incident that I remember clearly; and that is, when whirling out of the crowd and into an empty space, that the dancers had left clear for a moment, came a couple—a large blond girl and a young man, a boy, hardly as old as she, but so handsome, so dark, so full of life, and a sparkling sort of mischief, that it made one feel quite gay just to look at him. As they danced past the place where Hallie and I were sitting he was holding his partner's gauzy train in his long, fine fingers, and they went by us laughing.

"Who is that?" I whispered.

"That's Johnny Montgomery," Hallie whispered back.

"Who's he?"

"Why don't you know?" Hallie cried. She dearly loved to give information. "The Montgomerys were one of the very best families here; and he's the last of them. Old lady Montgomery died the year we went away to school, and he had heaps of money—but he lost it."

My sole performance in this line had been the dropping of a two-bit piece down a crack in the board walk, and before I had time to ask how Johnny Montgomery had managed to lose sight of "heaps," Mr. Ferguson came up and asked, "Don't you little girls want some ice-cream?" so I forgot to say any more about it.

That same season there was another notable occasion, when Hallie led me to the bedroom of her grown-up sister, and exhibited to me with awe-struck pride the dress her sister was to wear to the Sumner Light Guards' ball that night. It was a blue tulle with a fine frost of spangles over the bodice, and it seemed too dazzling to belong to a creature less wonderful than a fairy. But when Hallie went on, in a cautious whisper lest we be discovered, to confide to me that when she was grown up and out of school her mother had promised to give her a party, and that, since I was her best friend, of course she was going to invite me first of all, I began to realize that I, too, might some day grow up into a young lady, and be laced into a gown perhaps as beautiful as the one spread out on the bed before us.

Such a dazzling idea gave me an entirely new set of fancies, and was a pleasant book companion and bedfellow to take back to the convent. Hallie, who was a year older and half a head taller than I, had already begun to lengthen her dresses, and do up her hair, and I found it humiliating to be so small that at sixteen I had still to wear mine down my back in long curls, and my skirts above my ankles. The only thing that comforted me was that whenever father came to see me he always said:

"Child, how tall you are! You're almost a woman!" and though he was the one person who seemed to think so it was quite sufficient for me. When my graduation day came I was much excited to think how absolutely grown-up I would appear to him in my first long frock, but when I came to him after the exercises were over, he looked at me as if he were sad, and said, "Child, how little you are!"

That was a dreadful disappointment to me, but when I reminded him how he had always told me I was tall, he laughed, and said: "You were tall for a school-girl, but you're very little to be the mistress of a house."

That puzzled me; but on the way home, driving up through the valley, he told me more about what he meant. He said, "Now that you have stopped being a child you are going to be a very gay young lady; going to have fine gowns, and dance about like a butterfly; and you're going to keep on being my little girl; but at the same time I am afraid you will have to be a little lady of the house, too, and take care of me, and Abby—now that Abby's rheumatism is so bad—and go to call on the ladies who were your mother's

friends, and are going to be yours. Do you think you are tall enough to do all that?"

I was so surprised and so happy that I hugged him right there in the buggy, and said: "Do you really mean it?"

Father laughed, just as he does to cover up being rather serious, and said: "You are your mother's daughter, for she was a little fair woman, but there was never anything too big for her to manage."

I was happier than ever to hear him say that—he so seldom spoke of mother—and the idea of a whole house to manage, and of sitting at the foot of the table, and calling on grown-up married women seemed to me as merry and exciting as going to parties, and having beaux.

I had not been in the city for a year, spending my last vacations at the ranch at Menlo Park; and though I knew from what Hallie had told me, that the city was very different, yet when I got out of the buggy in front of the house the look of the street startled me. For a moment even the house seemed strange. But that was only because the other houses were all about it. As far as one looked up the hill there was nothing but thick houses, and queer little shops were crowding up the block so close that we had the appearance of being almost down-town. Even inside the house looked different, but quite beautifully different, done over with lovely, fresh papers, and Japanese mattings; but what touched and pleased me most of all was to find the picture of mother, which had used to hang over father's dressing-table, now in my room, above my bed. "You need it now more than I do," he said, and though I couldn't see just why I needed it, I loved to look at it. The amusing part of it was that mother in the picture was holding me—a little me—a baby two years old. Myself would never look out at me. But mother looked always, with the same half-brave, half-timid glance, when, sitting on the bed, I made her my confidences.

With all my new responsibilities, and my new clothes I felt as if I had somehow been "done over" too. Yet it was surprising how quickly I became used to the patter of my long petticoats around my feet as I walked, the weight of all my hair upon my head, and my stately pouring of the tea at the foot of the dinner-table. Father's friends were always coming in and out,

and staying to luncheon or dinner, and with their high silk hats, their elegant bows to me, and their laughing at things I said which were not in the least funny, at first they confused me not a little. But I grew accustomed to them, too; I grew even to like them, especially Mr. Dingley, father's greatest friend, who was the district attorney. He was a big, dark man, with a broad face, and a frown that never came out of his forehead. He looked frightfully severe, but I soon found out he was really quite easy-going, much more so than father, and often I could get around Mr. Dingley when father, for all his being pleasant, wouldn't have given an inch. But father said he had to be very stern, or other people would spoil me. By that he meant not so much Mr. Dingley, who was the same to everybody, as Señora Mendez, who had been mother's greatest friend. She had been a New England girl, who, in the early days of California, had married a Spanish gentleman. She was lovely to me. It was at her house that I went to my first ball. Except the Fergusons', hers was the only house in the city with rooms large enough to dance in, and that ball is still the most dazzling I can remember. I wore a rose-colored tulle skirt with a peasant waist of rose-colored satin, and father, for a great surprise, had given me a pair of pink silk stockings. No other girl in town had such a beautiful thing, and in the dressing-room they would not let me go down until I had shown them. The lighted dancing-rooms, and all the strange people, and my tall partners made me nearly die of shyness, but I danced two large holes in the toes of my lovely stockings, and afterward father teased me, and said he found he had suddenly become very popular with the young men. He had never been so called upon in his life.

But most of our parties were not such elegant affairs, though sometimes they were even more fun, like the Fergusons' calico ball, where I wore my grandmother's gingham, and prunella shoes; or the party the Sumner Light Guards gave, which was the prettiest of all on account of the young men's uniforms, and the way we sat around the little refreshment tables between dances with our mothers and our partners, the band playing all the time, and every one so gay.

I sometimes went to as many as four parties a week, so that in the morning it was all I could do to be up in time to see breakfast on the table. I found out that being a housekeeper meant more than long petticoats, and pouring tea. It meant being all over the house before ten in the morning, for,

as Abby said, a house has a lot of strings to it, and unless you keep them all tied up tight something's going to sag. But I enjoyed my authority of the house, and my liberty abroad seemed like license to me. I felt launched on a wide sea of life.

The city itself was changed to my new horizon. It was larger, more complicated, with more masts in the harbor, new streets and horse-car lines, and every one moved about in it like the pieces of a Chinese puzzle. The friends who had lived close about us had all moved westward or southward with the trend of the city, and between Telegraph and Chestnut Street Hills there were some very, fine houses. I was often running over there to see Hallie or Estrella, and my shortest way lay past the convent that stood a little apart in the middle of the settlement. Next to it, but facing on another street, was a house which had been built at the same time as the convent. The convent wall came up at its back. On the other three sides was a high fence. Over the fence only the upper story could be seen, and it had a look so still and closed up, that it brought back to me that feeling of mystery the city used to give me as a child. But I never noticed or wondered about it particularly until one day when I saw an open carriage waiting in front of the steps.

While I was looking a woman came out of the gate, and got into the carriage. She was Spanish, I saw at a glance, and big, and all in sweeping black, but instead of being dark she was tawny, with a wonderful glow of copper-colored hair through her black lace veil, and in all my life I had never seen a creature move so gracefully as she. It was like watching a beautiful cat. I asked Estrella Mendez who she was, and Estrella blushed, and said she did not know. And when I asked was she sure, because I knew the woman was Spanish, Estrella got quite angry, and said she wasn't supposed to know all the Spanish people in the city, and especially if they didn't have husbands. That surprised me, for the woman had looked quite like a great lady, and when I went home I spoke to father about it.

He said he feared Estrella was right—we none of us knew the Spanish woman. "But," I told him, "she looks like a queen; and she has a beautiful carriage." He laughed and said yes, she had money, and a good deal of influence in high places, but the women she knew were not the sort of

people I would care about; and he finished by saying I was a silly child to go staring at strange "greasers."

I did hate to have father laugh at me, but I couldn't help looking at her slyly when now and then I saw her about the city. She was like no other Spanish woman I had ever seen. Most of them are as white as callas, powdered over the lashes; but you could see the strong bloom of her skin even through the thick coat of rice powder she wore, and her lashes were lovely. I noticed that because she kept them half down, and looked out through them. But the most fascinating thing about her was the way she moved, like something flowing; and once in a shop I heard her speak, and her voice was so attractive, sweet and rather thick, with such a gracious, petting sound to it! But she was always alone. With it all she seemed to be mysterious, like her quiet closed-up house. I got to making up stories about her, and sometimes in my room, in front of my mirror, I practised looking out through my lashes. But it was a nuisance, for though they weren't short they curled back so suddenly that it didn't look right; and my hair being blond and flying into corkscrews, and my being so little, and forgetting not to step on my flounces when I tried to "sweep," altogether made it rather a failure, in spite of the black lace shawl.

But though I thought about her I didn't say anything more to father or Abby, because questions that hadn't bothered them when I was little seemed to worry them now. Father was for ever talking of the things I must not do. One was not to be about in our neighborhood alone. It was changing. And above all never to go over to Dupont Street, for that, he said was getting to be notorious, and he hated to have it so near. It was only a block below us, but it seemed to me very quiet, and though Mr. Rood's gambling-house was on the corner there was never any noise there, only such fine young men, and some that I knew, all the time going in and out of it.

But that pleased father least of anything, and he asked me how would I like to move over to the North Beach district, where all my friends were. Talking it over with Hallie and Estrella I liked the idea very much. But when I came home again to the old house, with the long windows, and the palm, and the long steps up to the conservatory, and all the rooms I knew,

the very idea that I could have thought for a moment of going away from it gave me a lump in my throat.

So I had to tell father that I couldn't. He pinched my cheek, and said: "Next year, then;" and so we stayed on. This was in February, 1865.

CHAPTER I

THE BASKET OF MUSHROOMS

The seventh of May was my father's birthday. I always planned some little surprise for him beside his present, and this morning I had got up very early, before any one else was stirring, to slip down to the Washington Street market for some fine fresh mushrooms. He was extravagantly fond of them, but we seldom had them because Abby was getting too old to be up for early marketing, and father always said that mushrooms should come in with the dew to be good.

I had bought a little straw basket, green and red, and lined it with leaves; and now I put on my white flounced gown and my flat green hat, so that when I should come in with my basket as they sat at breakfast it would seem like a little fête. Then I went a-tiptoe down the stairs that would creak, for I could hear Lee, the China boy, stirring in the kitchen, and it would have spoiled everything to be caught going out with my empty basket. When I had let myself into the street I felt very naughty and festive in my furbelows at such an hour of the morning. The city seemed so dim and still and empty that the rustle of my petticoats sounded loud as I walked along.

The Washington Street market was fully six blocks away, and they seemed the longer for being so quiet. When I got there the men were still taking the crates off the carts, and the stalls were not set out yet. It took me a long time to find what I wanted, so that when I came out the wagons were clattering on Montgomery Street, and in one or two shops the shutters were

already down. That made me hurry, for I was afraid of being late. I flew along with my basket in one hand and my flounces in the other. The sunlight had caught the gilt ball on the flagstaff of the Alta California building, and the sky that had been misty was now broad blue above the gray housetops. In my flurry I found myself on Dupont Street before I knew it; but after all it was the shortest way, and everything was quiet, not a blind turned. The houses on either hand were locked and silent, and nothing moved in the steep little street but the top of the green-leafed tree half-way up the block.

I was walking on the upper side of the street, and drawing near the corner. I was opposite Mr. Rood's gambling-house, which was shuttered tight, and looked as blank as the rest, with only the slatted half-doors of the bar and the dark spaces above and below them to suggest that it had an inside. I was just thinking I heard people talking there, when suddenly a sharp splitting noise seemed to ring inside my head, the slatted doors flew open and a man fell out backward. He fell in a heap on the sidewalk; and over him, almost upon him, leaped another man, with such a rush, such a face, and such a wild look, that he filled the street with terror.

I stood there, staring stupidly, too stunned to realize what had happened. He saw me, and for an instant he stood, with the pistol smoking in his hand—the handsomest man I ever saw in my life, and the most terrible. Then he flung the pistol into the street and ran.

He ran down Dupont, and disappeared into Washington; and all the while I stood there, listening to the terrible loud clatter his feet made in the silence. I looked across the street, and blue smoke was drifting out of the slatted door over the man who lay still. Then there seemed to come over me at once the meaning of the horrible thing that had happened, and I ran.

I heard a shutter flung open in the street behind me. I saw a glitter near the curb, a flash of steel, a shine of mother-of-pearl, and that was the pistol he had flung away. I felt suffocating, and my feet seemed weighted with lead as if I were running in a dream. And, strange enough, what filled me with the wildest terror was not the sight of the thing that lay still on the pavement under the drifting smoke, but the sound of those furiously running feet, dying away and away into the sleepy city. I felt as if I myself

were a criminal pursued, as if the house was the one refuge that would save me, and with a thousand horrors at my heels I burst in upon father just sitting down with Mr. Dingley, in the quiet, sunny dining-room.

At sight of me both jumped up.

"What's the matter, child?" father said.



"What's the matter, child?" father said. Page 29

"What's the matter, child?" father said.

I looked around, and realized I was still clutching my basket, though all the mushrooms had fallen out, and my foot was through a torn flounce, and my hat hanging on my neck. My mouth was dry. For a moment I couldn't get a word off my tongue; and then, "He fell, he fell!" I said, and, "He is gone!"

"Where was it?" The words seemed to be in Mr. Dingley's voice, yet came as if from, far off.

"Mr. Rood's gambling-house!" I gasped, and felt the top of my head getting cold and the floor beginning to move under me. I had a dim impression of Mr. Dingley rushing out of the room with his napkin still in his hand; then I found myself sitting on the sofa, with a stinging taste of brandy on my tongue, and heard father's voice saying, "Can't you tell me, child?"

"Oh," I said, "he's dead!" And then I poured all the story out in a breath. I saw father's face growing more and more keen and grave and I could feel his fingers gently around my arm as if he feared my turning faint again. Indeed the room around me seemed unreal, but what had happened in the street was still fearfully clear. It was cut into my mind as if it were still before my eyes, the toppling lurch of the falling body, the silk hat rolling into the gutter, and then that fine terrible gentleman that had sprung out after. The moment had stamped him as clear in my memory as years could have done. I could tell how very tall he was, how dark, how his brows made one black bar across his forehead, how his eyes were set deeply under them, how his chin was wide and keen and his left cheek flicked by a white scar near the mouth. At the time in my furious excitement I only knew that I must tell some one everything, or the thing would kill me. But whether it was father's strange stern face, his seeming so calm and going out so quietly, and yet in such haste; or whether it was some memory of the hunted look of the man who had flung away the pistol, I wished I had not described him so exactly. It would have been easy enough to have said I could not remember him clearly.

I was so stunned by what had happened before my eyes that I could not even formulate in my thoughts what it had been. The very impression of terror that remained with me was confused, and mixed with wounding pity.

For though he had looked so wild I could not remember that he had seemed ferocious or afraid. The look I remembered had not been fear of what was going to happen to him, but horror of what had been done—and horror at sight of me.

Voices in the street, sounding unwontedly loud and excited, reached me. People were hurrying past the house—all hurrying downward in the same direction. I saw Lee run across the yard and stand peering out of the side gate. I put my hands over my ears, and up and down, up and down I walked; and back and forth Abby followed me with a little plaid shawl she was trying to put over my shoulders.

CHAPTER II

THE EVIDENCE

It did not seem possible that Mr. Dingley and father could be gone longer than half an hour, but the hands of the clock went to nine and then to ten before I heard them on the steps. I made a dash ahead of Abby, and opened the door. "Did he get away?" The words flew off my tongue before I could think. I knew it had been a dreadfully wrong thing to say. "I mean the other man—is he dead?" I gasped. Father had quickly closed the front door behind him, for there seemed to be quite a crowd in the street, and there in the half dark I could see his face, and Mr. Dingley's, only as palish spots in the gloom. The thought came to me, "Of course he isn't going to tell me anything. He is going to say it is nothing I ought to hear about, and that I must go up-stairs."

"Ellie," he began—then he caught sight of Abby in the dining-room door. He held out his hand to me. "Come into the study, Ellie, Mr. Dingley wants to ask you a question."

It was all so unexpected and so startling to be called into the study where only men went and only business was talked about; and to hear it was Mr. Dingley, not father, who wished to ask me a question, that I wanted to shrink away and escape from the very facts I had been so anxious to know a few minutes before. But father held me by the hand, and I had to drag my feet down the long dark passage that leads to the study, hearing Mr. Dingley striding at my heels.

It was a small room, full of a great litter of papers, and smelling faintly of tobacco and Russia leather. I sat down in the leather armchair that was drawn up to the table. Just opposite me was a window looking directly into the green branches of a weeping willow; and at intervals the wind blew the leaves against the glass with a sound like "Hush!" Up to that moment I had had no memory connected with that room—only the general sense of awe it had given me as a child. But as soon as I was in that chair, facing that window, hearing the "Hush, hush," of the weeping leaves, in a quick distinct flash I saw myself, a naughty child, sitting up in that chair, in anguish of mind over a stolen jam pot, and my mother's face pulled to great gravity, no doubt to keep from laughing at the sight of me. I seemed to hear her voice again, "The truth, Ellie, remember nothing but good ever comes of the truth."

It flitted through my mind as a little, sweet memory, having nothing to do with what was happening at the moment, for the thought in my mind was all, "What has become of the man with the revolver?"

Father had sat down opposite me on a corner of the table, but Mr. Dingley walked to the fireplace, turned his back to it, put his hands behind his coat-tails, buried his big chin deep in his collar, and in just the same cheerful voice he used when he asked me how many hearts I had broken, "Now, Miss Ellie," he said, "what makes you think that the man who came second out of that door had a revolver in his hand?"

I looked at him in astonishment, his question seemed so silly. "Why, because I saw it."

He gave his head a brisk shake. "Yes, but what makes you know you saw it?"

"Because I heard it strike the ground." I was growing more and more bewildered.

"You heard it strike the ground," Mr. Dingley repeated slowly, "but"—Then with a sudden pouncing forward motion of his head and shoulders, he shot the words at me, "I thought you said he had it in his hand."

"Yes," I stammered, "but that was before."

Mr. Dingley was watching me steadily.

"Now, Miss Ellie, aren't you a little confused on that point?"

I was indeed; but it was his manner that was doing it. He seemed to snatch the words out of my mouth, and turn them into another meaning. "But it was there! you saw it yourselves!" I appealed to him.

Father and Mr. Dingley glanced at each other, and a strange thought came to me with a rush of relief. "Wasn't he dead, had he gone away, didn't you find anything?"

The answering look of their faces made my heart go down like lead. "We found everything as you told us except the revolver. There was no revolver there."

I sat clutching the arms of the chair, staring hard at Mr. Dingley, who seemed suddenly to have become a stranger to me. "Then some one must have picked it up."

"But, Miss Ellie, you say that the street was absolutely deserted when this thing occurred; and when I reached the spot there was a woman looking out of a window, and some laborers running up from Sutter Street, but no one had yet reached the place. Now, how could—"

Father struck in, "No, Jim, you'll only frighten her!" In a lower voice he said something that sounded like, "Not on the stand yet." Then, leaning toward me, across the table, resting on his elbow until his face was level with my own, "I know you must have been much frightened at what you

saw, child, and it's possible you may have been a little hysterical, isn't it? It's possible you might have fancied a revolver in his hand, isn't it, when there was none there?"

He said this very slowly and gently, as if he were trying to soothe me, but looking straight into his eyes I saw a sharp anxious light there, and the conviction came to me that he very much wanted me to have been mistaken. Mr. Dingley, from the fireplace, was watching me hard, as if he were trying, with that incredulous look of his, to force it on me that I must be mistaken. And then the thought floated through my mind that in some way it would be better for that handsome, terrible man if I could say I hadn't seen a revolver. I tried to make myself believe that they were right; I shut my eyes. The picture came to me as if it were before me still, and nothing in it was more clear than that thing of steel and pearl. "I wasn't hysterical," I said, "I saw it plainly."

"Could you take your oath in court?" father said in a stern voice.

"Oh, yes."

Father dropped my hand and leaned back. He looked puzzled. Mr. Dingley came close to him and said something so low that I couldn't catch it. But father answered in his usual voice as if he had forgotten I was there, "No, Jim, if she says so then she did—be sure of that!" He listened again while Mr. Dingley murmured to him, and the look of their faces, the lowered, hushed tones of their voices, made me feel, more than words could have done, that they were talking about something very serious. All the while Mr. Dingley was speaking father slowly nodded. "I have no doubt you could, Jim," he said at last, "and it's very good of you to offer, but we can't suppress evidence because it happens—" He dropped his voice and I lost the last word.

Mr. Dingley looked silently down for a moment, and I thought he was going to say something more, but finally he only, shrugged. "Well, what time do you want to go down, then?" he said.

Father looked at his watch. "We might as well get this business over as soon as possible. Ellie—" His voice sounded so sharply on my name that I

jumped up, all of a nervous tremble. "Go up-stairs and put on your bonnet, I want you to come with me."

I felt that my voice was woefully unsteady.

"Won't you please tell me what is happening and where we are going?"

"Martin Rood has been shot; he is dead. A man has been arrested, corresponding to your description, and we are going down to the prison to see if you can identify him." I stared at father, and my only feeling was one of vague, incredulous wonder. Martin Rood, the fine sleek gentleman whom I had seen swinging out of his gambling-house in the late afternoons—could that have been he, that huddled heap of clothes in the gutter?

"Quickly, Ellie," father's voice reminded me. I went stumbling up-stairs in a burning excitement. I think I had some wild notion of locking myself into my room and defying the house, for the idea of facing that terrible man with his wild terror-stricken face threw me into a panic. But Abby screamed at me that I was treading on my ruffle as I came up-stairs, and captured me; and I let her put another gown on me and my turban and a heavy veil without lifting a finger to help her, as if I had been a child. I knew father was waiting for me at the foot of the stairs, and there was no escape, I must go down. When I got into the hall I saw that Mr. Dingley's buggy was standing in front of the house, though it was but a few blocks down Washington Street to the prison on Kearney.

But we did not drive as I had expected straight down Washington, making instead a detour of several blocks, and finally, by means of a little alleyway, coming to the back door of the prison.

The only people in sight were a couple of policemen, but, Mr. Dingley on one side and father on the other, fairly lifted me out by the arms, and hurried me into the building, as if they were afraid of being caught by some one. The first thing I was aware of was the cold gray light falling on us from high overhead, and a faint sickly odor, very faint but very penetrating, the like of which I had never breathed before. We were standing in a flagged hall, looking up through a great well, past gallery after gallery, to a skylight covering the top of the roof. It was the sunshine filtering through

the dull, thick, greenish glass which gave that cold, sad-colored light. Within the galleries I caught glimpses of men at work at desks; and over the railings lounged figures, peered faces, disheveled, sodden, disreputable; and sometimes near these a policeman's star twinkled. I saw it all in one upward glance, for I was hurried on. Our steps clattered over the flags of the hall, and then, turning to the right, we began to go down-stairs. I took tighter hold on father's arm, for we seemed to be descending into a dungeon. That sickly, acrid odor grew heavier, making me think of caged animals, and yet, what made it worse, it wasn't quite like an animal either.

The hall we came out into was smaller and darker than the one above it, and empty except for a policeman standing by a door. To him Mr. Dingley handed his card, and, after a few minutes, we were admitted to a small office. It was divided in half by a railing; on the inner side was a desk, at which a man with a star on his coat was writing under the light of a green-shaded lamp. He came forward, opened a gate in the railing for us to enter, shook hands with Mr. Dingley and father, and then was introduced to me. His name did not reach me, but I understood the words "Chief of Police." Then all three talked together in low voices, while I sat where I had been bidden, in a chair close to the railing. Once or twice the man with the star glanced at me, and then, presently, they all looked at me, and I couldn't distinguish one face from another. My head was whirling so with excitement I felt as if I were living in a dream. Yet when the man with the star began speaking I heard him with curious distinctness.

"All that is necessary for you to do, Miss Fenwick, is to tell me whether you recognize the person you saw this morning."

I sat forward on the edge of my chair. I tried to draw a deep breath, but the sickly atmosphere seemed choking me. There was the tread of feet outside the door; it opened and two officers came in, stopping one on each side of the doorway; and then, with a queer shock, I saw not the one man I had expected, but a file of men, shuffling one behind the other, and linked together by what seemed a long steel chain, from wrist to wrist, into the seeming of a single thing. This thing halted opposite the railing, and faced about before me, where it appeared to me as a line of heads and moving arms and legs and shuffling feet. But among them all I saw only one

individual. It was absurd if they had expected to confuse me with these other creatures. I saw him instantly and I knew him past hope of mistaking. His clothes were all torn and disordered; there was a cut on his forehead and a bloodstained bandage showed on his wrist beneath his sleeve; and the bitter way he held his head up and stared straight past me at the wall made him seem quite grim and yet, somehow, very forlorn. A lump rose in my throat. I heard the Chief of Police saying, "Is there any person here you recognize?" I swallowed hard and opened my lips, but the only sound that came was like a sob.

Quickly the prisoner turned his eyes on me. There crossed his face again a look like the faint shadow of that look which had transfixed me, as he burst out of the door. But in a moment it was gone, and he smiled. Such a smile, so warm and kind, as if he were reassuring and encouraging me to go on! It transformed him from a terrifying presence into something beautiful. It made me forget the others and the room and, curiously, in their place, came the confusing memory of a ball-room and a slim boy with black brows whirling down the polished floor with his splendid partner, both in a gale of laughter. Those long white hands, now linked together with a chain,—hadn't I seen them holding up a woman's filmy draperies?

"Speak, Ellie," my father's voice said. "Can't you tell us?"

It brought me back from my fancies with a great start, and before I knew what I was saying I had stammered out, "Yes." The next moment I realized they were all waiting, waiting for and looking at me; and it seemed as if I could not go on with the truth. It was only the thought that everything depended on me, and that, whatever I said, father would believe it, that nerved me to get through with it.

"He is that one," I said, "the fourth from the end."

The Chief of Police looked at me sternly. "You are sure of that?"

"Quite sure." I was surprised at how steady; my voice had grown.

The Chief of Police said something in a lifted voice, the line of prisoners filed out with one of the policemen, and left the man I had pointed out alone

in front of me. It was then I noticed how his hands were awkwardly carried in front of him, held by two steel bands around his wrists, with a chain like a bracelet-chain swinging between. The sight of it affected me strangely. I had a new bracelet which also had two bands with a chain between, but they were of gold, and both were worn on the one hand.

The Chief of Police came and stood beside me, and said, "Look at this person, Miss Fenwick;" and I had been looking at him all the time, as if by doing that I could make him understand how terribly I wished I had never seen him. "Can you take your oath—could you take your oath in open court that he is the man?"

The Chief's voice sounded solemn, and those words "oath" and "open court" made me feel frightened. But I saw he held up his hand, palm out, and mechanically I held up mine. "Yes," I repeated after him, "I can take my oath in open court." My voice sounded very loud to me, and clear, and not at all like my own.

There was a pause, and now they were no longer looking at me, but at the man standing alone in the middle of the room, as if the chain between his wrists had made him different from them, as if he wasn't a man at all, but a stone. Yet I couldn't look at him like that. He was not at all dreadful to look at, only so alone and fiercely proud and wretched looking that something ached inside of me just to see his face.

Then the Chief of Police nodded at the policeman and said, "That will do." But before the man could move forward the prisoner had walked straight up to the rail, and standing there scarcely two feet from me, in such a low voice that only I could hear, "I am sorry I frightened you this morning," he said. "If I had known you were passing I should have managed it differently."

This all happened so quickly that I had hardly seen how dark his eyes were before father thrust between us, and I heard his voice, sounding very low, and saying something about infernal impudence and not presuming to come near me. The policeman touched the dark man's elbow. He started, half-turned on the man, made a movement with his hands; but then he felt the jerk of the chain. The blood rushed to his face. With the policeman

holding his arm he walked away across the room, and I wondered what sort of place he was being taken to. It wasn't until the door had closed upon him that I realized how angry father was. Mr. Dingley was saying that prisoners ought not to be permitted to speak without permission, but the Chief leaned over his desk, smiling at me, and asked, "What did the prisoner say to you?"

"He apologized for frightening me," I answered.

Still smiling, as if he were coaxing a child, "Exactly what words did he use, Miss Fenwick?"

I could have repeated them exactly, but I hesitated, for the last words he had let slip had sounded oddly in my mind—"If I had known you were there I should have managed it differently." He seemed to make himself so absolutely responsible for what had happened! And when I thought how Mr. Dingley had twisted my words about I was afraid—afraid that if I repeated the ones that this man had spoken they would somehow get twisted into a meaning—perhaps not the true one—that would be bad for him. I was so upset, I said, and so startled by the man's speaking to me at all I hardly thought I could repeat them word for word.

Father put my coat around me and said, "I hope that is all," very coldly.

"Yes," the Chief said, "except that this young lady must understand that she is not to speak of what she saw this morning."

"Remember, Ellie," father said, "if your friends talk to you about it, you have heard and seen nothing."

I murmured, "Of course," and followed father out of the prison with a very strong conviction that nothing was real.

As we walked home again all the familiar surroundings seemed dreamlike to me—the Plaza, with its high iron railing, and the shops facing upon it, and our own green palm farther up the street, fluttering on the sky. Father himself, so silent and walking on without ever turning his head to look at me, seemed quite a different person from the father who had gone with me the day before, merrily, to buy my bracelet. The thought of the man

with the dark eyes and the chain between his wrists filled all my mind. Who could he be? The sense of warmth that had come with his smile, and that very curious sensation I had had when he had come up close to the bar and spoken to me, were with me yet. His voice had been pleading and deferential, surely nothing in it to resent. The memory of his face made me forget the chain between his wrists; as if he himself had been greater than any of the people around him.

We had reached our own door, but before father could put his key in the lock, the door opened from within, and there in the hall stood Hallie Ferguson, her new blue bonnet on one side, her face crimson with haste and excitement.

"Oh, Ellie," she gasped, "have you heard? I've been waiting the longest time for you. Isn't it awful? Johnny Montgomery has shot Martin Rood, and they say it's about the Spanish Woman."

CHAPTER III

THE RUMORS

Hallie's facts dashed so coldly and so suddenly upon the warm fancies which had been taking possession of my mind, that for the moment I could only stupidly gaze at her. Then, without any reason that I could account for, I burst into tears.

I cried all the while father carried me upstairs. I cried convulsively while Abby was getting me to bed, and, wound up in the sheets with my face hidden in the pillow, I cried inconsolably for a long time. That aching sensation in my throat would not wash away with tears. Vaguely I heard the doctor explaining to father how my present condition was due "to severe nervous strain, and the subconscious effort of the constitution to combat it." I knew it was nothing of the sort, but just the plain fact that Johnny

Montgomery, seen once dancing at a ball, and ever after to me the model of all romantic heroes, was a murderer. It was dreadful to think that it was through me he had been taken, because I had remembered so well his beautiful black eyebrows, and the little white scar near his mouth; but nothing that had followed had been so terrible as that first sight of him, when he rushed out of the door, with all the horror of what had just happened, in his face; or so cruel as the thought that he could have done such a thing. But why did his look, both then and later, come back to me accusing and reproachful? How could I help what I had done? I had had to tell the truth, and surely he must know that nothing but good ever comes of that, no matter how hard it seems. I agonized through the early evening hours, and fell asleep not with a sense of being drifted deliciously away, but of sinking down under deep exhaustion.

When I awakened the next morning I was astonished to find myself feeling quite differently—a little tired and languid—but the aching misery, the black hopelessness, that had fallen on me the night before had quite evaporated, left perhaps in that bottomless pit of sleep into which I had sunk.

It seemed now, in the broad daylight, as if I had made too much of everything that had happened; as if Hallie must be mistaken. It could not have been Johnny Montgomery who had shot a man, or, if he had, it must have been an accident. And, even suppose he had meant to kill him, what possible difference could it make to me?

Here Abby knocked at the door, and, showing a rather forbidding face around it, said that Hallie was down-stairs; but that if I was going to have any more conniption fits I would better stay where I was. She left a glass of milk and a clean tucker and sleeves on my chair. I swallowed the milk, and hurried into my clothes, but I descended rather slowly to the hall. I had always confided in Hallie, and I knew she would probably expect to hear all about it from the moment I had seen him. I hated to think of the questions I would have to answer; yet I would have to face them sometime, and it was better to get it over at once.

When I reached the sitting-room door I was decidedly dashed at sight of Estrella Mendez's red pelisse behind Hallie's blue hat ribbons. Two of them

were a little too much for me, and I was all ready for flight when Hallie pounced upon me. She is such an imposing person, wears so many tucks and ruffles in her clothes, such bows on her hats, and can spread her skirts about and rustle so, that I always feel like the merest child beside her.

"You poor little Ellie," she began, "how pale you look still! I am afraid I frightened you to death yesterday."

I murmured something about being much upset.

"Yes, your father said you were not at all well. He gave me such a scolding for pouncing out on you like that!" She laughed her deep throaty chuckle. "But I supposed of course you had heard, it happened so close to you. Didn't you even hear the shot?"

I must have gaped at her. Could it be she didn't know that I had seen it? Didn't know what I had been through? I recalled confusedly the warning of the Chief of Police and father not to say anything of what I had seen. This was what they meant; this was the meaning of the carriage, the alley and the back door of the prison; all my part in the business had been kept secret. I wondered what in the world Hallie could have thought of my behavior last night, but I was greatly relieved to think of the fusillade of questions I had escaped. I managed to get out something about father's having heard a shot.

"Of course I know that," Hallie said, pulling me down on the sofa beside her. She was too full of her subject to notice how oddly I must have looked. "It's all in the paper, how they found him—Mr. Rood, I mean."

"It's here," Estrella said, sitting down on the other side of me, and unfolding the crumpled sheet she had been carrying rolled up in her hand. She and Hallie held it stretched out in front of me.

The sight of Johnny Montgomery's name staring at me from the page made my heart beat a little. But when I began reading down the column I couldn't seem to make sense of it. The only thing that stood out in the jumble was a name nearly at the bottom of the sheet, Carlotta Valencia. It gave me a queer little stir of feeling, merely seeing that name under his. Keeping my finger on it, "Who is that?" I asked.

"Oh, don't you know?" Hallie demanded, looking surprised, but delighted at the chance of giving more information. "That is the Spanish Woman." Estrella crossed her arms on her waist, and drew herself up, exactly as her mother does when she thinks some one is beneath her. "You see," Hallie went on, explaining a little more to me, "she was—well, a sort of friend of Mr. Rood's, and the paper says she feels dreadfully about him!" Estrella sniffed.

"But," I cried, "you said last night that the shooting had been over her."

"Yes, I know!" Hallie leaned forward impressively and seized a hand of each of us. "It's perfectly true—at least it's what my father said when the news came. He said, 'That confounded Valencia woman is at the bottom of this, depend upon it.' But your father was very angry that I had spoken of it, so of course I'm telling you this in strictest confidence. The paper," Hallie went on, we both listening with open eyes, "doesn't say the Spanish Woman had anything to do with the shooting. So you see, no one does know exactly what it's about. It's really the most mysterious thing! They found Mr. Rood lying there quite dead," she continued breathlessly, "and they went to Johnny Montgomery's house, but he wasn't there. Then some one told Mr. Dingley they had seen a man run down Washington Street, so they followed that trail, and finally they got him in a house down on the water front, in a bad part of the city. My father said it would have made things better for him if he had given himself up quietly; but he barricaded the house, and almost escaped out of a back window. They had a dreadful fight before they got him even then. He is so strong, father says, that he just threw the men right and left as if he had been a madman."

Hallie is wonderful when she is telling news. She never says unkind things about anybody, and she is always so excited over what has happened that she makes it sound like a romance. But now I was too anxious to enjoy it. I felt I had to ask one question more, though every word that came out of my mouth was a possible slip or lie. "But, if they found Mr. Rood in the street with nobody near him, what makes them think it was Mr. Montgomery who shot him?"

"That is the very queerest part of it," Hallie declared, nodding until her green feathers nodded again, "but he was suspected immediately. What they

say is—" she lowered her voice impressively—"that some one saw him do it."

I fairly cowered in my chair. "But he can't have meant to kill him," I urged. "Why, his family was one of the best in the city. Just think, Hallie, your mother knew his mother well, and he used to play with Estrella's brothers."

Estrella flushed. "He hasn't been in our house since he was a little boy," she said angrily. "I wouldn't think of bowing to him on the street. He hasn't been received in good society for a long time."

Hallie sagely shook her head. "Yes, but I guess it's because he didn't care to go, and lots of very nice girls have always been in love with Johnny Montgomery. Lily West kept his picture in a satin case hidden among her party clothes for ever so long. And do you know, when Laura Burnet heard about Johnny's arrest last night, she fainted flat on the floor."

Hallie's bolt upright impressiveness seemed to demand some comment, but I could not manage a sound; for at her words there rushed back to me, with humiliating clearness, my own hysterics of the night before. Was it possible that Hallie thought I was in love with him, too? My cheeks burned and burned.

"Were you ever introduced to him, Ellie?" Estrella asked, looking at me curiously.

"No, she has never met him," Hallie promptly took the response out of my mouth; "but she saw him once—don't you remember, Ellie, at my sister Adelaide's coming-out ball?"

I said, yes, I remembered it.

"He danced most of that evening with Laura Burnet," Hallie pursued, "and she was perfectly wild about him. My brother Tom saw him kiss her in the conservatory," Hallie chuckled at that memory, "and for a while it was said that they were engaged, though she was three years older than he was. But he was terribly in debt then, and of course she had lots of money."

Hallie sighed, and added, "Isn't it awful he should have ended in this way? Adelaide always said there was no one who could put your shawl around you so beautifully as he."

It seemed terrible to me that they could sit there talking of how badly he had been thought of by society, and how beautifully he had put women's shawls around them, when he was in prison waiting to be tried for his life. I was glad when the girls went and I could think about it by myself.

I felt sick and bruised. All suggestions that Hallie had innocently let fall put such an ugly face upon his actions. I didn't want to believe that hateful gossip. His smile had been so charming and kind. There was something about him that made him seem of so much greater importance than any one else I had known; that made every little look and motion of his memorable and eloquent. And when he had looked straight into my eyes I had felt the warm flowing of the blood in my veins. Had it been these strange qualities of his that had made nice girls fall in love with him? I peeped into my mirror to see if my face looked as queer as my feelings felt. I whispered the words again, "To fall in love." What could that be like? To make Laura Burnet faint away at just the news of his arrest—what a great and terrible feeling it must be! When I thought of him as a person who could inspire such emotions he gathered a halo of mystery and power; but when I remembered Hallie's saying how he had been engaged to Laura for the sake of her money, he seemed to me the merest wretch. I told myself there was no need of my worrying about it, as he was in prison and my part was done. It couldn't possibly interest me any further. All the same I couldn't get it out of my head.

Father came home to luncheon that day, bringing Señora Mendez with him. He looked worried and tired, but I had never seen her so sweet, and so very gay.

She said I had been in the house too much, looked pale, and that she was going to take me shopping. As we got up from the table she lingered a moment, saying something to father about taking some one's mind off something. And father said, yes until we can tell which way it will go. So I supposed they were talking business.

Señora Mendez is such a great grand sort of lady that usually one is a little in awe of her; but to-day she made me feel very much at home, as we drove down the street in her big open carriage. She never once mentioned the shooting, and I didn't have courage to speak of it myself. But we heard of it all around us. In the first shop we went into a woman just behind me said in a loud voice, "Do the rebels think they can shoot us all down as Wilkes Booth shot the president?" And then, again, at another shop where we were looking at lace, the clerk said, "This is a terrible thing for the city, Madam, the loss of such a valuable citizen." But Señora Mendez seemed not to hear him, and went on explaining to me the difference between honiton and thread, and showing me how beautiful embroidered net looked over pale blue silk, until I felt quite cheerful just through listening to her and looking at the pretty things. She wound up by buying me a lovely pair of thread lace sleeves, and swept me out in the wake of her train feeling almost happy again.

Just as we had got into the carriage two gentlemen with silk hats, very elegant indeed, came up and talked over the carriage door with her. The one with yellow gloves said, "This is a bad business. It's a good thing poor old lady Montgomery never lived to see this day." And the other said, "I wonder what the effect on the city will be?"

Señora Mendez said she hoped the effect would be a law requiring our young men to settle disputes with their fists instead of firearms, and that it was a shame nice boys would brawl in gambling-houses. She smiled and looked most easy and pleasant over it, and all the way up the street she chatted right along as if nothing serious had ever happened. But when we stopped at the house, just as I was leaving the carriage, she quickly took my face between her hands and kissed me hard on the forehead. "You poor little motherless duck," she said, and left me with the impression there had been tears in her eyes.

I wondered why she should feel so suddenly sorry for me; nevertheless I felt cheered and consoled—hadn't she spoken kindly of Johnny Montgomery as a nice boy? But it was the last good word I was to hear of him for a week. I needed the memory of that cheer and consolation through the next hard days.

For now that I was recovered from the shock of the first day I began to realize that the shooting of Martin Rood was not at all an ordinary shooting. It had stirred up great excitement. Only one month had passed since the president's assassination; the feeling against the Southerners was still very bitter, and not only were all the Montgomerys dyed-in-the-wool Alabamians, but some of the relatives had fought on the Southern side. Rumors flew about the city of a mob attacking the prison. There was a guard of soldiers around it the first night, and when they took him from there to the jail on Broadway, it was in the middle of an armed escort. All sorts of stories as to what had caused the shooting were abroad, but the one thing the reports agreed upon was the fact that the quarrel had been of long standing. This was very exciting to hear about, yet I didn't enjoy talking of it as the other girls did.

Only when I was alone, with hot cheeks and anxious eyes, I read through the long accounts that filled the papers, hoping to find some word in his favor. It seemed to me that the whole city was against Johnny Montgomery. The *Bulletin* had stories of another shooting down South, though it appeared that that time he had been the one who was shot at; and of how he had lost his money in land speculations of a doubtful character. The *Alta California* called him a rebel, and said that his career had been "a demoralizing influence to the youth of the city." Though, on the other hand, it called Mr. Rood our esteemed and lamented citizen, which was puzzling to me, for he was only a gambling-house keeper whom none of the best men in town was friendly with. But the papers spoke very warmly of him; called Mrs. Rood, Senior, his sorrowing mother, and then they mentioned the Spanish Woman. They said she had been in love with Rood, and that he had expected to marry her. That recalled a memory of what father had told me when I first asked him about the Spanish Woman—that she had money, and influence in high places—and I wondered what that influence could do to Johnny Montgomery's case. Altogether I was much disturbed. I hated to ask questions of father, he had been so distressed over my part in the affair; and besides he had been very busy that week, so many men interviewing him when he was at home—Mr. Dingley, and others who were not elegant, but very businesslike—that I hardly saw him except at meals. Once or twice I had caught him, when he thought I wasn't looking, watching me with an anxious and harassed expression; but most of the time he was preoccupied.

On the morning of the fourth day after the shooting, as I sat at breakfast, I took up the paper and read that the trial of the People Versus John Montgomery was set for the last week of May. I glanced down the column and a sentence caught my eye. "It is said the prosecution is in possession of sensational evidence which will materially affect the aspect of the case." I sat for some minutes with the paper in my hand, listening to it rustle, gathering my courage.

"Father," I finally said, "do you think that Mr. Montgomery is really wicked?"

He looked over at me with that smile of his which is most serious. "My dear child, I am not Almighty God."

"But you know what I mean," I protested. "The papers have been saying such nice things about Mr. Rood, but you yourself once said he was an 'insidious and pernicious influence in the community'; and the papers are printing such dreadful things about Johnny Montgomery! They are telling all sorts of stories about him—that he has been in shooting scrapes and dishonorable business deals, and—and horrible things," I ended rather uncertainly.

"Oh, no doubt he hasn't been such a bad fellow," father said, passing his cup for coffee. "As far as his land operations are concerned, I know for a fact that the 'dishonorable dealing' the *Bulletin* talks about was all on the side of the men who got his money. But you see he would go into the deal in spite of the advice of the executor of the estate, antagonized all his father's friends—plucked the Roman senators by the beards, as it were;—so of course they were ready to believe the worst of him. Then he went badly into debt, and accumulated too many creditors to be popular. But Rood, you see, always had money, always kept his escapades quiet, and was very liberal to the city. He has given a deal to different public institutions. They can't do otherwise than praise him."

He took up his letters and began to open them with a paper-knife.

"But," I said, "they say Mr. Montgomery has been engaged to a girl for her money."

Father threw back his head and laughed—I can never tell when I am going to amuse him.

"Engaged to a girl for her money? That's the worst thing on his list, I suppose, eh, Ellie?" Before he finished the sentence he was almost grave again. "I know where you got that information." He shook the paper-knife at me. "Women's gossip is an invention of the devil! Don't listen to it! The poor fellow has enough real counts to be accused on, God knows!"

He said the last words with such an emphasis as did away with all the comfort his explanation had brought me. I did not dare to press him further; I was afraid I might hear worse.

He sat a moment frowning down at the tablecloth; then, "How would you like to go down to the ranch for a week or so?" he inquired.

"Alone?" I asked.

"Well, I will go down with you, and stay as long as I can. Abby, of course, will be there all the while. The colts are to be broken in next week—that will be worth seeing; and no doubt the flowers will be beautiful."

I said I would like to—though indeed I did not at all care. I was not thinking of flowers. After father had left the house I went up-stairs to my room; and, first locking the door and drawing the curtains close because I did not want even my climbing white rose to see me, I took out my new bracelet, and clasped it—one gold band around each wrist with its chain swinging between—and closed my eyes and, holding my wrists out, drew them apart until the chain jerked and stopped them—to see just how it felt!

CHAPTER IV

THE FIRST DAY IN COURT

As father had said, the breaking of the colts was well worth seeing. The first day I arrived at the ranch, clinging to the top rail of the corral, I watched the glossy huddled flanks and shoulders and tossing heads of the youngsters crowding together in the middle of the inclosure, quivering with apprehension of the man approaching with his rope; until, the man being unendurably near, one and another would break and wheel, and trot with high head, whinnying, around the corral close to the fence. Then, when Perez had one fast, one end of his rope around the glossy neck, and slowly working toward him, hand over hand, finally touched the velvety head, how the creature started, swerved, tried to back, and felt the jerk of the halter. It made me think of the way the prisoner had started when the policeman touched his arm. At first their nervous, proud, restive airs reminded me constantly of that strange person; and not only the colts, but some times it was some drifting shadow of cloud, some color or some sound, that inexplicably brought him up to mind; and I would plague myself with wondering what was going on in the city, and what was to become of him. But as the days passed and no newspapers came from the city—at least I saw none—and no letters to remind me of what was happening there, I recalled him less and less distinctly. He remained in my mind but as a sort of dream; things about me reminded me only of themselves, and I became absorbed in picking out a new saddle-horse, and searching the meadows over to see if the Mariposa lilies were coming up this year in their accustomed places.

Splendid fields, in early spring filled with wild flowers, stretched down toward the bay, but close around the house were the somber and, to me, more beautiful groves of oaks. To wander away until I had lost sight of the house in their olive glooms and saw nothing around me but dark trunks, crooked elbows of boughs and sweeping leaves, was my delight. I loved to crown myself with their white beards of moss, and fancy I was walking through a cathedral aisle, a princess going to be married. But, whereas I had never needed to imagine a bride-groom before—myself and the crown had been enough—now my imagination insistently placed a figure walking beside me, or coming to meet me under the solemn roof of branches. I had to abandon my crown, and run races with myself before I could leave the figure behind.

On the whole it was safer, I found, just now not to imagine too much, but instead, while father was there, to take long rides with him into the San Mateo Hills; and, after he had gone, shorter excursions in the vicinity of the town. Or else to walk with Abby in the morning down the broad Embarcadero Road to the little wharf on the bay. It was charming enough there when all was idle, with white adobe huts, and dark faces sleeping in the sun, and the lap of the tide on the breakwater. But when a ship was coming in, or was loading to get out, the Embarcadero filled the eye,—carts backing up with vegetables; casks being rolled out on the wharf with a hollow and reverberating sound; hallooings from the boat; and then round she would swing, with a tremendous snapping of canvas, while the shadow of her brown sails, patched with red, floated over all.

The country, and especially the country in spring, seems to have a way of making the place where one has lived before very unreal and far distant. Two weeks of such dreamy living drifted the city, and the violent things that had been done there, so far behind me that I could think of them without a tremor. I could even think of my own part in them as if it had happened in a play.

Then one evening, just before dark, a boy on a heavily lathered horse rode up to the piazza steps, and, like the messenger in a novel, handed me a letter. It was from father. "Have everything in readiness to start to-morrow morning," he wrote. "I shall expect you at the house at six-thirty to-morrow night without fail." This letter threw me into a flutter of excitement. I was accustomed to short-notice orders from father, orders that carried no explanations; but they had always been sent through the mails. A messenger meant great need of haste. I recognized him as father's office-boy. Was my father ill, I asked.

No, he was in excellent health.

I thought, "Perhaps he has been suddenly called out of the city and wants to see me before he leaves home." It surely couldn't be that this summons had anything to do with Johnny Montgomery's case. Having to rush off at such short notice I was luckily too busy to have time to worry about it; coming up through the valley Perez let me drive a good deal, and the horses were so spirited I needed all my wits to keep them from running away. But

when we began to wind in and out among the tall round hills to the south of the city a nervousness came upon me, and I kept wondering what could be wanted of me. By the time we reached the house on Washington Street I could scarcely sit still.

Father was standing in the door to welcome me. I fairly flew up the steps. "What is the matter?" I asked, almost before I hugged him.

"By, and by we will talk about that," he said. "Now, come in and see what a fine host I am." But as I passed him, I heard him saying to Perez, "Before you put up the horses I want you to take this note out to Mr. James Dingley, at his house, and wait for an answer."

It was a charming table, lit with candles, and there was a delicious dinner, but I was too excited to eat. The glass of wine that father made me drink only seemed to make my thoughts spin faster, wondering what could be going on since by father's manner, and the message he had given Perez I felt sure it must be something unusual. When dessert had been put on, and Lee had gone out, leaving us alone there opposite each other, I thought, "Now it's coming."

Father had set down his coffee-cup untasted. "I have had to send for you, Ellie," he said, "because of a matter connected with the trial."

My heart was beating quickly, and in spite of myself my voice trembled.

"When does it begin?" I asked.

"It began last week," father answered, "but there has been no evidence of any consequence yet."

He was silent for a moment, looking thoughtfully at the dancing flames of the candles. "I suppose you know," he went on, "that, in trials there is usually plenty of circumstantial evidence, but eye witnesses are rare and their testimony most valuable?"

I nodded. This feeling of suspense was intolerable.

"I very much hoped that yours would not be necessary. Mr. Dingley was of that opinion. But a new development has suddenly arisen, and now I am afraid you will have to be state's witness—the most important one they will have."

There are no words to tell of the panic I was in. Father's face, wrinkled with anxiety, was watching me. "I would give anything to keep you out of it," he said.

I tried to make my voice steady. "And will I have to tell them whether or not I think him guilty?"

He put his hand over mine. "God bless the child, no! You will have to tell them only exactly what you saw, all that you saw, and just how you saw it."

I could breathe again. After that one awful moment, when the whole weight of the trial seemed on my shoulders, anything was a relief. "But, father," I said; "do you really think that he is guilty?"

Father gave me an odd look. "Aren't you the one person in this city best qualified to answer that question?"

I stared at him. I felt as if I had been suddenly set up in a high tower, above all other people in the world, and that I was going to fall. I had known in a blind sort of way what I had seen, and, also, that no one else had seen it; but I had not realized the terrible isolation, the responsibility of such knowledge. "Oh," I cried, "I only wish I had never gone near Dupont Street. I am so sorry I have made you unhappy!"

"Well, my dear child, this is no time for regretting what has been done. We must think of ourselves only as two citizens of the state, and be ready to do all we can in that cause. You know it will not be easy, it will be made as difficult as possible for you to answer straightly." He had hold of both my hands now, was looking hard into my face. "And a young good-looking prisoner will make it harder yet." His eyes seemed to go straight to my thoughts. "Ellie, I can depend upon you, can't I?"

I was glad I could say, in quite a steady voice, "Oh, yes, yes!"

He smiled. "Of course I should have known without asking. Now don't fret about it. To bed, to bed, to bed! We shall have to be up early to-morrow if we are to be in court by nine o'clock."

He was smiling, as he said this, with his old gaiety, but I suspected he was only putting it on to cheer me, as I now understand Señora Mendez had done when she had taken me shopping.

After I got up-stairs I couldn't sleep. At about ten o'clock I heard the door-bell ring, then long heavy steps going down the hall, and the shutting of a door which I guessed to be the door of the study. That was odd; father seldom had visitors so late. I tossed and tossed. I kept trying to picture the court room. I saw it as a vast place, with a cold chilly light, like the hall of the prison, filled with a surging mob of people; serried rows of lawyers all in white wigs—the memory of some English pictures—and a terrible judge in a black gown, calling out my name. Suppose, even with the best I could do, I should make a mistake; forget something, or, what would be much worse, remember something wrongly!

I realized that I was hearing voices with remarkable clearness. I was able to recognize father's and Mr. Dingley's, and they seemed to be talking just beneath my window. Then it occurred to me that, since the evening was mild, the window of the study, which was just beneath my room, must be open. The sound of those voices worried me; Mr. Dingley's was louder than common, and there were times when both seemed to speak at once. I got up softly and going to my window very noiselessly closed it. Then, so that I should not be quite stifled for air, I set the door into the hall wide. It opened outward, so that I had to step out on the landing. Just as I did so, I heard the study door flung open, quick steps in the hall, and there, from that part of the hall directly beneath the landing, Mr. Dingley's voice:

"Oh, that's just your supersensitive conscience! There was no need of bringing the child up to town. There's enough circumstantial evidence to convict ten men of whatever guilt there is."

Then father—"Yes, and I thought you had enough to convict one—that is I did last week. But this new development,—this Valencia woman, puts another face on the business."

"Come, now, Fred, the poor woman is really mighty upset over Rood's death! All she says is that she doesn't really believe the boy did it."

"And for that reason, and that reason alone," father broke in, "she is going to throw all her influence with the defense—thousands of dollars spent, and Lord knows what wires pulled, to get him off. Man, you can't believe it! Don't you know she's going to fight us every inch of the way? You'll need every scrap of testimony you can dig up! And such an important piece as—" They were advancing up the hall. I shrank back and closed the door.

Faintly I heard the voices in the hall going on a few moments longer, then the front door shut with a deep sound, and the house was still. I got back into bed but it was not to sleep.

It seemed that since I had been away from the city this strange thing had happened: the Spanish Woman, whom the papers had described as mourning for Rood, had taken up the defense of Montgomery. I couldn't understand it. It would seem that I ought to have been glad—I, who had been so anxious to find a champion for him—but queerly enough the only feeling that came was one of fear, as if, instead of saving, she had been dragging him into worse danger. I lay, staring now at the ceiling, now at the window, where, toward dawn, a paling light began to shine. I no longer felt the nervous anxieties that had kept me awake through the earlier part of the night. I was calmed by one great dread,—the thought of the Spanish Woman! Her presence rose up and possessed my imaginary court room, obliterating the figures of the judge and the lawyers, until it seemed that she and I and the prisoner were the only persons in the room, and that the one person she was fighting in all the city was myself.

The next morning when I came in to breakfast father laid his hand on my cheek, which felt very burning, and said, "You are not fit to answer one question." My throat was dry, and it was hard work to swallow things, but he stood over me and made me eat a good breakfast. After that he had me

go over the story of what I had seen on the morning I had been coming home with my basket of mushrooms. When that was done, "Now remember," he said, "all you will have to do will be to tell that same story, and to answer to the best of your recollection all questions put to you. If you are careful to do that they can't confuse you." Abby had fetched my turban, with a dark veil, which I had to put over my face before I went into the street. There a carriage was waiting.

As we drove it seemed to me there were more people in the street than usual; and when we reached the jail there was a dense crowd in front of it, and policemen were striking with their clubs to make a passage through. But our carriage drove, as Mr. Dingley's had done before, around the building and through the little alley to the back entrance. Even here some people were gathered; and as I stepped to the pavement a woman called out in a shrill voice, "Ain't that Carlotta Valencia?" Father seized me, and almost lifted me up the steps and into the high, coldly lit hall.

To-day, however, it was not empty. A continuous stream of men, some of them escorting ladies, were hurrying in the front door, and across the echoing flags, and up the stairs. Following them, we were upon the first balcony and in front of the door which was kept a-swing by the people going in. Father stopped and said something to a policeman who seemed to be on guard in the hall. He pointed at a door next to the one which was so constantly opening and shutting.

"This way," father said, and I found myself, much to my surprise, not in a crowded court room, but in a small box of a place, hardly large enough to hold the six chairs that furnished it, and with only one other person in it besides ourselves. "This is the witness room," father explained. "We await our summons here."

I took one of the six chairs. The room was a dreary little place, with a high, dingy ceiling, one small window, placed far up the wall, and a small air-tight stove with no fire in it. I looked at the one other occupant with a greater interest, now that I knew that he must be a witness. He was a dark, slick, Mexican-looking man, who dangled his hat nervously from his fingers, and kept glancing at the door. Presently it opened, a policeman put his head in and said, "Witness Manuel Gora." The Mexican jumped and

shuffled hastily out. Father took the *Alta California* from his coat pocket, and I sat trying to make out the pattern in the old carpet at my feet.

I had distinguished a dead-looking rose and some faded out sunflowers when I heard the click of the door, and a waft of perfume touched the stale air, and made it like a garden. I looked up. There she stood in the doorway, the Spanish Woman.

She was all in black, her face wax-white, a little black hat on her wonderful golden-red hair, and in her breast a tuberose. It was the intoxicating sweetness of that which had breathed upon me first, and now kept on breathing upon me, while she watched me through her eyelashes. From sheer fright I kept looking at her—I couldn't help it—until I felt father's hand touch mine. That seemed to break the spell. I looked down at the carpet again and felt the color rushing to my face. I heard the rustle of her dress, a soft, silky, indefinite sound. She had come forward into the room, had taken one of the chairs, I knew—I heard the subsiding of her draperies—and then I felt her watching me. Her presence was like a great light in a closet. It was oppressive. I began to breathe quickly, and the odor of her flower was making my head ache.

I heard the crackle of father's paper as he rolled it; then his voice, low and speaking close to me, "Mr. Dingley said you were to be called after Gora. We would better go into the court now, so as not to be hurried."

Somehow I had a fancy he would not have suggested our going into court so soon if the Spanish Woman had not come into the witness room. I followed him down the hall, not daring to turn my head, though I thought I heard the door open again after we had closed it, and then the rustle of her dress; but it did not seem to be following us, but to grow fainter, as if she had turned in another direction.

We joined the crowd of people hastening toward the swinging door. As we came up to it I heard from within a high-lifted resonant voice that I thought I recognized as Mr. Dingley's speaking with pauses and rising inflections, as if addressing an audience. It ceased just as we entered the court.

The room was large, though not nearly so large as I had imagined, and quite cheerful in color. I had an impression of yellowish pine walls and plenty of light, a continuous though not loud murmur of voices and the incessant flutter of the movement of a crowd. There were no serried ranks of judges and barristers in black gowns, indeed at first sight my confused eyes saw nothing but the crowd. And such a well-dressed, holiday-looking gathering! I saw girls whom I knew, their gowns making bright spots of color among the men's dark coats. It looked more like an afternoon concert than a trial. Every place seemed to be taken, and men and women, standing up, lined the walls. But a police officer said seats had been reserved for us, and led us to two on the side aisle near the front, and quite under the shadow of the balcony. Once I had sat down among the crowd I ceased to notice it, and began to take in what was directly before me.

At that end of the room which we were facing was a platform, railed off, and on it a great high desk, at which a rather undersized man sat, leaning his head on a beautiful white plump hand, and looking up at the ceiling as if he were thinking. His face was round, fair and unlined, and had it not been for his mop of grizzled hair I would have thought him quite young.

"That is Judge Kelland, who tries the case," father whispered.

I felt a wonder that he should seem so uninterested in what was going on. In front of his desk, but below the platform, a man was writing at a little table covered with papers; and in front of this again was another table, larger and quite long, at which a number of men were sitting. Nearest us Mr. Dingley sat with another gentleman, small, slim and very calm looking. They had their heads together, evidently talking; and next to them was a young man who seemed to be making jottings in a note-book. Beyond him I could make out no more than vague heads and elbows, on account of the movement of the crowd. To the right of this long table and on a line with our places was something I recognized as the jury box, the heads of some of the men in it showing quaintly over the high side.

From one thing to another my eyes traveled hastily, taking them in unconsciously, for the one figure I was looking for—that I had expected to see before all others, standing up in the prisoner's dock, the centering point for all eyes—I could not find. The only thing that might have been a

prisoner's dock, a small railed inclosure on the right hand of the judge's desk, was empty. But presently there was a shift in the restless gathering, some people, who had been standing up, sat down; and I saw a little more of the long table, first a space, where no one was sitting, and then the broad back of a man, who had shifted in his chair as if to face the person next to him. In a moment he had turned back again, and leaned forward, and there, in the little space through the crowd,—a profile like a picture in a frame,—I saw Johnny Montgomery's face.

The start it gave me may have been pure astonishment, I saw it so suddenly and it looked so different. All the dishevelment, the defiance and anger were gone. His black hair was brushed down, smooth and burnished as a crow's breast. The stock and the great black satin bow beneath his chin were as immaculate and as perfectly arranged as father's, and his face itself was calm, almost sweet in expression.

I had been expecting to find a prisoner in a dock, and here he was, dressed like any other distinguished young gentleman in the court room, and sitting among the lawyers. All at once he put up his hand to push back his hair, and I saw that his hands were free. I felt a sense of unspeakable relief, as if he had already been acquitted. The only thing that seemed to set him apart from others was that expression of his, which was troubling in its very sweetness, as if he were not trying to combat or oppose anything; as if he had foreseen to the end what would happen, and had given himself up from the first.

Then a voice, high and sing-song, seeming to come from nowhere, began calling out something which I couldn't understand, and the Mexican I had seen in the witness room rose from the crowd and shuffled up into the little railed inclosure. The gentleman who was sitting with Mr. Dingley got up and began asking questions in a weary monotonous voice, to which the Mexican replied that his name was Manuel Gora, that he was a Mexican by birth, and by occupation a barkeeper; that at present he was without employment, but that previous to the seventh of May he had for ten years been in the employment of Martin Rood.

I could hear the stir all over the court room, and my own heart began to beat.

"Ah!" The gentleman who was on his feet seemed to shake off his apathy and grew very, emphatic, "Now, Mr. Gora—on the night of May the sixth where were you?"

The man answered in a low voice that all that night he had been in Mr. Rood's gambling-hall.

"Go on, tell us and the gentlemen of the jury all that you remember of the occurrences of that night and of the morning of the seventh until six-thirty o'clock."

When the Mexican began speaking all the rustle died out in the court, and in the deep silence his precise, mincing utterance made every word distinct. He had gone on duty at six-thirty o'clock, he said; the hall had closed at eleven, it being Sunday night, and at that hour Mr. Rood had not yet come home. He had locked the doors and sat up until two. Then Mr. Rood came, and went immediately to bed.

Here the lawyer interrupted, "Do I understand you that Mr. Rood lived at the gambling-hall?"

No, the man said, but he had rooms upstairs which he often used. After Mr. Rood had retired he had himself gone to his own room, which was also up-stairs, but in the back of the house. He was not yet asleep when he heard the bell at the side door ring. "And then," the Mexican said, "I went to Mr. Rood's door and asked if I should go down-stairs. Mr. Rood said, 'No,' and then he said, 'Curse him, no, I won't let him in.' But after the bell had rung three times more, he called me and said, 'Go down, Manuel, let him in. I will come down in a few minutes.'

"After that I went down and let in Mr. Montgomery."

"One moment, Mr. Gora." The lawyer who was standing had raised his hand. "Was there anything in Mr. Rood's manner which led you to suppose he had feared a visit from Mr. Montgomery?"

The man who had been sitting next the prisoner was on his feet. "Object, your Honor, to the form of the question, as being—" He mumbled the rest, I

couldn't get a word of it.

The judge brought his eyes down from the ceiling, looked at the big man who was calling out to him; then said in a conversational voice: "Objection sustained." Then looking at the other man, "Change the form of the question."

"Father," I whispered, "that man who just now objected, isn't he Mr. Jackson? Hasn't he been at the house to dinner?"

"Yes, and one of the best lawyers in the city; but he is defending Montgomery, I am sorry!"

"Did Mr. Rood," the first lawyer began again, "show surprise when you told him there was some one at the door?"

"No, sir." The man hesitated. "He was angry."

Mr. Dingley's lawyer looked triumphantly at the lawyer for the defense; then he again turned to the witness. "Had you ever seen the person you let in before?"

"Very often. He came a great deal to play."

"Can you point him out?"

The Mexican peered at the crowd. "He is sitting the third from the end at that table."

There was a sigh that seemed to come from the whole court room. I tried to get a glimpse of Johnny Montgomery's face, but too many people were standing up, and moving chairs, and when the flutter subsided a little I was able to catch the witness' voice going on.

"Then I brought them some drinks, and Mr. Rood told me to go to bed. They were left alone down there when I had gone up-stairs. I went to sleep. I was waked up in the very early morning by quarreling voices, and before I was wide-awake I heard a pistol shot. I ran down the stairs and out into the back of the house, as I do when there is trouble, and wait until I think it is

over. Then, after listening a while, everything perfectly quiet, I go out into the bar where I left them and it was empty; but on the floor I see a pistol; I look at it and it is discharged; then I go into the other rooms, no one. Then I hear the crowd crying, I look out the door—there I see him!"

It seemed to me I couldn't bear to hear any more, and I stopped my ears until I saw the lawyer for the prosecution sit down. But as soon as he was down the lawyer for the defense was on his feet, and had begun asking a lot of questions that seemed to me very foolish, and very little concerned with Johnny Montgomery. Then, without seeming to have made any point at all, Mr. Jackson sat down; the Mexican came down from the witness-stand, the judge left his place and went out through a door at the back, and a man who had been hovering on the outskirts of the lawyers' table, hurried to Mr. Dingley, and whispered something to him. Instead of coming over to speak with us, as I had expected, Mr. Dingley went hastily out of the room. Father left me to speak with a man on the other side of the court; and, among all the standing and walking and going out, Johnny Montgomery and I were the only ones who sat quite still.

As yet I saw him in profile. He was leaning forward, his elbows on the table; now and then he ran his fingers through his hair. Once I thought he was going to drop his head in his hands; but after an instant's drooping he threw it up sharply with a sort of shake that tossed the long locks out of his eyes, and faced around in his chair and saw me. He didn't seem surprised at finding me there. I couldn't be sure that he had not known just where I was all the while; but though he looked at me so steadily it was not, somehow, like a stare. He did not look, at me quite as if I were a human being, but as if I were a statue or a picture. He was the one who turned away. Then I sat looking at the back of his head.

There was a murmur of talk all through the room, but above it I heard two men behind me greeting each other.

One said, "Well, what's the game? Is she a stricken widow or a hopeful fiancée?"

"A little of both, I guess," the other answered. "She's been pretty good to Rood—ten years—but he was getting gray and fat, and the fair Carlotta

herself is nearing the age when a woman begins to yearn for beauty and youth. There's one thing I will say for her, though, she seems, to be hard hit. I never saw the man Carlotta would turn her little finger over for before, and she's going in for acquittal with all she's got."

"It's scandalous, that's what it is!" I heard the first speaker bring down his fist on his open palm.

"Oh, I don't know," the other said. "I think it's pretty decent of her, and she may manage it. Great is Carlotta!"

They moved away, and I sat still, staring stupidly at the back of Johnny Montgomery's head. The cool callous tones of the men knocked on my heart like blows. I was amazed at the familiar way they spoke of the Spanish Woman, in spite of all her dignity, and commanding beauty; but to hear them speaking of Johnny Montgomery as if he belonged too her was intolerable. It was ridiculous! Of course it might be that she was interested in his case, might even be in love with him; but that he should care for her —

I was so unnerved that I didn't notice father's reappearance until he leaned over and touched my arm.

"You will probably be called next," he said. Then, he must have felt me trembling and supposed it to be nervousness. "Remember, for the honor of the family," he whispered, smiling.

The lawyers and the men who had been writing were all coming back to their places; and then Mr. Dingley hurried in, and down the aisle to where we were.

"My dear Fred," he began; and then I couldn't hear any more, because he pulled father by the arm until they stood a little farther off from me, where they talked very earnestly for some moments. Father looked perfectly disgusted.

"Next time, be very sure before you order our presence in court," he said as he came back to his chair. "I am capable of great disagreeableness, as

you know."

Mr. Dingley smiled and rubbed his hands, and said these little unexpected things would turn up. Then, as the judge was coming into the room, he hastened back into his place. Father threw his coat over his arm and said, "Come along, Ellie."

"What is the matter?" I asked.

"Oh, one of their infernal technical hitches. After insisting on your presence this morning, your testimony is not required."

I got up very slowly. I couldn't resist sending one glance toward where Johnny Montgomery was sitting, and as I did so he turned his head. It was the same quiet gaze he had given me before. It must have been only my fancy that saw something wistful in it; but I hated to go. I felt as if I were leaving him alone in the hands of his enemies. It seemed impossible for me to remember that of all those enemies he had I was the very worst.

CHAPTER V

THE SECOND DAY IN COURT

As father and I crossed the lower hall, "Do you believe all these stories about the Spanish Woman are true?" I asked.

He looked at me quickly. "What stories?"

"Why, I heard them talking in court to-day; and last night,—I didn't mean to,—I overheard you and Mr. Dingley as you came out of the study."

Father looked grim. "It is with those stories they will try to convict him." He took a few more strides before he added, "If they can prove that Montgomery wanted to cut out Rood they'll have a bad case against him."

He didn't speak again until he put me in the carriage. Then he said, "I hope that you will get this matter out of your mind. I hate to have you think about it."

I said I would try. Indeed, after that last remark of father's about Montgomery wanting to cut out Rood it seemed to me that, if I didn't quickly get something else into my mind, I should go crazy. So while the carriage bounded over the cobblestones, I was busy planning—the menu for dinner to-morrow, where to leave my ear-rings to be mended, how to do over my blue silk gown, and where had been the error in the butcher's bill. My thoughts rushed from one little thing to another, afraid for an instant to let go.

Upon arriving home, Abby hanging over the banisters, wanted to hear about the court proceedings; but I called out to her that my testimony hadn't been required—and would she please get out the apricots, and after luncheon I would make that sauce she had been after me to do for the last week.

She seemed astonished, but gratified, at my unwonted energy. I had been an absolutely useless creature about the house for so long. Now I hurried through luncheon, and attacked the apricots as if my life were staked on getting them halved, stoned, and boiling.

"Good Heavens, child, how you rush!" Abby protested. "There's no such great haste." But she did not know that I was trying to run away from an idea.

In the intervals of preserving I dived into the cellar and brought up my rose and lilac plants; and the afternoon was spent in running hot-cheeked from the stove to the garden, digging, carefully sprinkling, while Abby lowered the roots; then packing the earth and patting with all my might; darting back to the kitchen again to ladle out the steaming stuff into jars and strenuously to screw on their covers.

But for all my wearing of myself out, through the steam of the cooking pots, between the leaves of the rose-bushes, the pursuing idea would lift its head. The picture of the Spanish Woman as she stood in the witness room,

the golden glimmer of her hair, her wonderful white waxy face, and the way her eyes had sparkled at me through her lashes, returned to my memory, powerful as the odor of her flower. I compared her with that flower—luxurious and perfect looking, as if she had grown in a hothouse; and with that strange overwhelming characteristic which drew, in spite of all disliking. It was useless to cry, "I do not like you and I will not believe in you." There were two things I had to acknowledge—her will, and her power of seduction. Hadn't I felt the light of it as she had stood looking at me?

Finally, when wearied out, I lay in bed that night, the idea I had been fleeing overtook me; and I gave up and looked it in the face. "Well, yes, and suppose he does love her? Should that surprise me so much? How should he help it? She is so beautiful!"

Still that admission had been forced out of me in a moment of weakness, between my pillow and the dark; and I was determined it should not get hold of me with its swarm of attendant tormenting thoughts. I was resolved to go into court, thinking of nothing but just that small measure of evidence which was mine to give; and to come away again, turning my back upon the whole matter, and taking up again the round of my daily employments.

This heroic resolution was knocked on the head the next morning by father's announcing that I was not summoned for the opening of the court,—and he added parenthetically Lord knew when!—but might be called for any time that afternoon, so I was to hold myself in readiness. This left me in a miserable state of uncertainty, which was not improved by seeing my name in the *Alta*, as witness, just above an exhortation to the people of San Francisco to see that justice was done, even if the law failed in its work.

The best course seemed to be the immolation of myself in the long neglected house work. A vigorous sweeping of my room, the preparation of an elaborate luncheon salad, and the total rearrangement of the parlor furniture might help to get rid of that heart-beating expectation—soothing, and bulwarking me around with domesticity. But the excitement of the city kept invading my retreat, as if it were so full of that great matter that it had to spill over even into houses where it wasn't wanted. The first ripple had been the sight of my name in the paper that morning; but the wave went

quite over me when, just before luncheon, Hallie rushed in. She had been at the trial all the morning, and had only just seen the *Alta* with my name.

She hugged me a number of times, with exclamations of how awful but fascinating it must be, to be a witness, and what was it I knew—why hadn't I told her—she would never have divulged one word of it—though of course if I was under oath! Still, couldn't I tell her all about it now?

I believe that Hallie's respect for me had taken a leap with the news of my position, and when I explained that I was still under oath, and couldn't tell anybody anything until I told it from the witness-stand, she looked at me with positive awe.

She stayed to luncheon, and it was a trying but most exciting meal. Alas for my elaborate salad! We might have been eating india-rubber for all we knew or cared. For Hallie poured forth all the history of the trial, from the time I left the court room, and I would not have stopped her had it been possible to do so.

It seemed that the afternoon of the opening day a man who was a waiter at the Poodle Dog was put on the stand. This was the new witness Mr. Dingley had spoken of. He told how Mr. Rood had been at supper in the restaurant at about midnight, how Mr. Montgomery had come in with another gentleman, and gone up to the table where Rood was sitting. While he did so the other gentleman sat at a table near the door. Mr. Rood and Mr. Montgomery did not have supper together, the waiter said; did not even drink together. They talked only for a few minutes, and he thought they were disagreeing because, though their voices were not loud, they sounded angry. Then Mr. Rood got up suddenly, overturning his chair, and said, "I won't hear anything from you," and though he had not finished supper, paid his bill and went out of the restaurant. Mr. Montgomery had waited a few moments before he followed him. The gentleman who had sat near the door had been the last to leave the restaurant.

"And then," said Hallie, warming to her narrative, "they called the man who had come into the Poodle Dog with Johnny, and what do you think! it was Willie Felton."

"Not the one who went to dancing-school with us, and had such red cheeks?" I wondered.

"His cheeks aren't red now," said Hallie; "and he has wrinkles all around his eyes, just like an old man. He has been awfully dissipated. And, oh Ellie, you should have seen him sitting up there looking at Mr. Dingley and looking at Mr. Jackson, and biting his nails, and never daring to look at Johnny Montgomery. He said he had met Johnny about twelve o'clock that night, by chance on Montgomery Street. They had walked a little way together, and Johnny had said, 'I am going away to-morrow,' and Willie Felton asked was he going to the races. Johnny laughed and said, 'No. I am going to some place I've never seen before, and I'm not coming back until everybody has forgotten me.' He behaved queerly, seemed to be very much excited; although, Willie said, he was sure he hadn't been drinking.

"As they came to the Poodle Dog Johnny said, 'There is some one here I want to speak to.' And after they were inside he said, 'Excuse me a moment,' so Willie Felton took a table near the door, saw Johnny talk with Rood, saw Rood upset his chair as he went out, and Johnny follow him out of the door. When he himself got outside, he said that Rood was nowhere in sight and that Johnny was standing looking up Montgomery Street. He seemed to be very angry. Willie said, 'Where are you going?' and Johnny turned on him and said, 'I'll tell you where I'm going—I am going about my business!' and then he walked quickly away up the street in the same direction that Rood had taken.

"While he was telling about it," Hallie went on, "Mr. Jackson kept interrupting, saying, 'Object, your Honor,' and making it awfully hard to follow the testimony. Then another young man was called, and he didn't tell any story. They had a hard time even making him answer questions. But he did tell that he knew the quarrel between Rood and Johnny began three years ago at the time of the California Bank shortage, when Johnny said that Rood had lied himself out of prison and an innocent man in.

"Oh," I cried, "I'm so glad!"

Hallie looked as if she thought I was crazy; but I explained that what I really was glad of was that the quarrel had been Rood's, and not Johnny's

fault; indeed that it had shown Johnny to be in the right, at least that once.

"Well," Hallie declared, "he does need a good word, I must say!"

This morning, she informed me, had been awfully stupid,—just cross-examining, and interrupting; but finally they did call some one new—a Mexican woman. And she testified that for two years Carlotta Valencia's friends had known her as Mrs. Rood. "And then mother wouldn't let me stay any longer," Hallie lamented, "because she said the woman wasn't a proper person. But I wanted awfully to hear what else she said!"

Here Abby came in, and remarked that if we were going to talk all day we would better go somewhere else and give Lee a chance to clear off the table.

The garden has lovely places in which to sit, so we went out there and took the rustic bench in the shade of the cypress hedge.

"But what does Johnny Montgomery's lawyer say?" I asked, for that was really the point of interest for me.

"Why, he claims that Rood committed suicide, because he was despondent over something—business I guess; and of course they did find a discharged revolver in the bar. The weak spot in that, father says, is that the bullet Rood was shot with is much too small for that revolver."

I knew there was a far weaker point in the defense than that, and I wondered, in the face of it, how I was ever going to drag my unwilling spirit up into the witness-box. The summons might come at any moment,—might come now, while we sat talking with our feet in the sun and the cypress shadow cool upon our foreheads.

At four o'clock father came stepping out of the conservatory, calling out, "What young person will give a tired man a cup of tea?" Then, noticing my questioning look, "No summons for us to-day," he said; so I ran in to fetch the tea-table.

Tea in the garden was a rare event. The few warm spring days gave the opportunity, and nothing was prettier than the scarlet lacquer tray with the Nankin cups set out under the heliotrope vines. I asked whether this was any special celebration, and father said yes; it was a farewell complimentary to him. He had to go out of town to-night. He hated to be away over Sunday, he explained, but there was business at Alma which he must look into sometime during the next five days; and week days for the present would be out of the question—by which I knew he meant he must stay on account of the trial. Then he stopped being sensible, and began teasing Hallie about her latest beau. He loves to do that, because she takes it all so seriously, and never sees that he is joking her. Just as she was protesting that she had no serious intentions toward the person in question, two young men came around the path from the front of the house. Hallie's beau and Jack Tracy, who had fluttered my sentiment a short time before by asking me to marry him. But now he was too bubbling over with importance to remember to look sentimental.

Had we heard the latest sensation, they wanted to know? Montgomery had tried to break jail. Came mighty near doing it, too!

I had been holding a cup and saucer when he began speaking, and when he stopped it was on the brick path in a hundred pieces.

"Poppyclock," father said, "the town is full of rumors."

But, no, they said, it was true enough. They had it from good authority. It seemed that the sheriff had been bribed. Just how and by whom I couldn't make out, because every one was talking at once. But the sheriff had been removed, "pending trial," said Jack Tracy, and the deputy was acting in his place.

"But," I said, "if it wasn't Mr. Montgomery who bribed the sheriff, how can you tell he really wanted to escape?"

Then every one laughed, and I stooped over and began picking up the pieces of the Nankin cup, so that no one should see how I was blushing, but my hands shook so that it was all I could do to hold the pieces. What in the world was the matter with me lately? There was no reason in my behaving

like this, as if Johnny Montgomery had been an old friend. I excused myself on the pretext of having father's bag to pack, and escaped into the house. "All the same," I said to myself, "I don't believe he tried to get out, or even really wanted to. From the way he looked in the court I am sure he doesn't care what happens to him."

But oh, I did wish he cared a little more; how I wished that some one could show, in his behalf, one contradictory piece of evidence; so that all the testimony wouldn't seem to be narrowing down to one point where there would be room for but one thing I could believe him to be!

CHAPTER VI

THE SPANISH WOMAN'S HOUSE

Sunday, which found me sole mistress of the place, was beautiful, warm, and beguiling. That lovely locked-in feeling, which comes only when the streets are quiet, and no tradesmen, not even the postman, comes knocking, soothed me after the days of tension and expectancy.

Abby went off early to church, and I took a book out to the rustic seat by the heliotrope. At about half-past ten Mr. Dingley came through the conservatory; but he was used to coming in and out of the house so much that his joining me in the garden was no more of an invasion than if he had been one of the family. He said father had told him he was to be out of town, and he had come around to see how the household was getting on. We sat there very comfortably in the warm sun, aimlessly talking, hearing the sweet notes of church bells. I was just about to resume my book when Lee put his head out of the conservatory door.

"Some one to see you, Miss Ellie," he announced, and disappeared abruptly before I could ask who.

I went in, fearing it would prove to be some girl whom I did not know well, who had called out of mere curiosity. I was surprised to find, awaiting me in the hall, a person whom I did not know at all—whom I had never even seen before. It was a half-grown shuffling Mexican, with a blank and stupid face, looking as if he might be some one's stable-boy. But as soon as he saw me, he produced from some pocket and presented to me with remarkable swiftness and dexterity, a small immaculate white note. It was addressed to me, and the writing was not Estrella Mendez's small copper-plate script, but a larger, bolder, more dashing hand, scarcely like a woman's.

"To the Señorita Elenora:" it began,—and I wondered whether it could be from one of mother's old friends, for she had had several among the great Spanish families of the north. "I am asking if you will honor me with your presence for a short hour this morning," the letter ran. "It is impossible that I come to you, for I am ill. But there is a very great reason why I must see you. It is a matter touching justice. You will not fail." It was signed "Carlotta Valencia."

I read the signature twice over, and then the letter. No, my eyes were not playing tricks. But still, could it be some practical joke? I put the envelope to my face. Ah, it was she, it was the perfume of that flower! She had really written; she had summoned me.

The very fact that she had communicated with me, this being who was not as I was, whose life seemed as irrevocably separated from mine, as if she inhabited another planet, was amazing. And as for those expressions in her letter, "a very great matter," "touching justice," I dared not think what I wanted to believe.

I carried the note out into the garden. "I don't know how to answer this," I said, handing it to Mr. Dingley.

He read it, and whistled. "Well!" he said; and then, "there's one thing sure; you will not go alone!"

"Why, you don't mean to say I'm to go!" I cried.

He looked inquiringly. "Why not?"

"Oh, but father doesn't even like me to speak her name."

Mr. Dingley coughed. "Quite right, quite right! That is, of course, under ordinary circumstances. But in affairs of this sort, where state's evidence is concerned, we are obliged to lay personal feeling aside. Now from this letter," and Mr. Dingley tapped the little sheet which he held before him, "I gather that the Señora Valencia may have some information concerning this case of ours now going forward. Of course if it's incriminating, the state must have it. On the other hand, if it should tend to exonerate the defendant, of course we shall be very glad."

I murmured, "Oh, yes!" The hope of a possible means of clearing Johnny Montgomery went flushing through me.

If the Spanish Woman had anything to say I knew it would be in his favor. Still, there was something strange about it. "But if she has this information," I asked, "why doesn't she tell it in the court?"

"My dear Miss Ellie, why indeed? We never know why women do things. But it has been my experience in legal cases, and especially in criminal ones, that women will often give evidence in some such high-fantastic way as this, which could never be got out of them through the proper channel,—that is by means of cross-examination, in court. Now she's evidently taken a fancy to tell you something, and I feel it is our duty to see just how much is in it."

"Oh, yes," I said again, but this time more faintly, for when I thought of whom I was to face, some cowardly thing in me wavered, "But are you sure it's—safe?"

Mr. Dingley laughed. "My dear Miss Ellie, we don't live in the dark ages!"

He made me feel ashamed of my hesitations. I went back into the hall, told the Mexican in Spanish, yes, that I would come quickly. He seemed satisfied with this verbal message, and I watched him shuffle down the

steps, in spite of his loose-hung gait, with admirable quickness. Then I told Lee that I was going out; dinner at half-past two, all as simply and usually as if I had been intending merely to stroll over to the beach. But there the usualness of things ended.

Mr. Dingley did not at all take the way I expected, the most direct and open way by the broad easy streets, where at this hour of Sunday the church-goers were promenading; but we went roundabout, through unexpected short cuts, and then across the empty stretches of the sand-lots toward where the long gray façade of the convent stretched; and close beside it the high fence with the latticed top which surrounded the Spanish Woman's house. Above the fence the roof and the small windows beneath the eaves were just visible. As we drew near my heart beat quickly, and still I felt that, as when I was a child, I was only going to pass it. But we turned, and I realized I was actually stopping at the gate.

This was so high it was merely a door cut in the fence, allowing no glimpse of what was within, and instead of immediately opening it, Mr. Dingley rapped upon it with the iron knocker, whose lion head had been wont to snarl at me years ago. I heard a sharp clicking as of something being unlocked, and the gate opened. But after we were inside I got an uncanny shock, for excepting ourselves there was not a soul to be seen.

"Clever contrivance that," said Mr. Dingley, glancing up. And then I noticed a wire which ran from the fastening of the gate to its top, and from there in a straight line to the house. But even this discovery didn't remove my uneasy sense of being in an enchantment.

Around us were weedy grass plots, bushes smothering in vines, broken flower urns, a dry and weather-stained fountain; and to and fro across the neglect of it all moved the shadows of the restless eucalyptus trees. A brick path, very mossy and giving uncertain foothold, ran straight to the front of the house—a blank-looking façade, all the shutters closed over the windows, and a deeply hooded door.

Mr. Dingley gave the bell handle a vigorous pull, but not the faintest tinkle reëchoed through the interior. We waited. There wasn't a sound of any one inside approaching through the hall. I was fully prepared to be admitted

by the same unseen agency that had moved the gate. But when, quite suddenly, the door opened, I was aware of a figure, very dimly seen in the gloom of the hall. We were allowed to enter without a question, without a word; and as quickly the door closed upon us. After the broad sunlight the hall seemed so dark, I could but sense high ceilings and hanging draperies above my head, and feel beneath my feet the soft depth of a carpet. All that my eyes could distinguish was the little white glimmer of Mr. Dingley's card as he handed it to the person who had opened the door.

We were led through several rooms; but either they were interior rooms without windows, or else the windows were closely muffled, for they were so dark I could hardly find my way. But when at last our conductor drew back a curtain, a tempered light streamed upon us, and showed me that the cornices of the anteroom where we were standing were gilded, that the carpet which I was crushing under my feet, was the color of wine, and every fold of the velvet curtain where it took the light like a ruby. The servant, holding it back, was a strange creature, with a tightly closed mouth, and eyes that looked as if he kept them open only a crack to see out of, but not on any account to let any one peep in. He waved at the room in front of us, and then, still silent as an apparition, returned, disappearing into the gloom through which we had come, carrying Mr. Dingley's card with him. I followed Mr. Dingley into the great apartment, which I thought must be the *sala* of the house, and sat down in the midst of its magnificence.

It was in strange contrast to the neglect of the garden without; and to my eyes it was novel in character. There were dark portraits in old gold frames on the wall; curtains shutting out all light, but the faintest and most colored; mirrors multiplying the tapestries and marble statues, and seeming to extend the very walls of the room itself. I kept catching glimpses of figures standing in these delusive vistas, and then, with a start, realizing they were but myself. Presently the servant returned. I saw multiple images of him advancing upon me from all sides as if to surround me. They flitted, disappeared, and the real presence bowed.

"The Señora wishes to say she is too ill to descend to the *sala*. Will the Señorita graciously come up-stairs?"

Mr. Dingley turned to me. "That's about as I expected. Then I will wait for you here."

Involuntarily I took hold of his coat, "But you said I shouldn't go alone!"

"Oh, of course, of course," he smiled. "I meant I'd come with you to the house. That's one matter. But to go up-stairs, that's hardly possible! Don't you see, Miss Ellie," he lowered his voice, "it's quite probable this is just a ruse to get rid of me? She would hardly want to speak before a third party."

The reminder that the Spanish Woman was going to speak, and the probability of what that speech might mean was enough to make me relinquish Mr. Dingley's coat, and send me in the wake of the serving-man with almost a light heart.

He led me out of the *sala*, not by the curtained way through which we had come, but by a door opening on a little entry, and from that up a stair, which was not at all like the stairway I had seen in the large entrance hall. I had never been in a house so bewilderingly built. I followed down halls that dwindled into passageways and so quickly did my guide move, so far he kept in front of me that even when my blue bow dropped from my hair pat upon the floor I dared not stoop to pick it up for fear of losing sight of him. I kept on ascending unexpected little steps; entered doors that opened abruptly as panels in the wall, branched off into yet narrower halls, and finally was ushered into what seemed a sort of anteroom, with only a few chairs furnishing it, and a great extent of polished floor stretching out in front of me to a curtain which hung across one whole side of it. There was a sweet though rather close odor, which wrought powerfully upon my imagination. Walking cautiously, since the floor seemed as slippery as glass, I followed my conductor. He drew the curtain aside a little—enough to let me slip through—said something in Spanish, some one musical word which I did not understand, and the curtain closed behind me. I stood there feeling like a doll, absurd, small and lost.

I was aware of a greater sense of air and sun than I had had since I entered the house, of a farther extent of that shining floor, broken by great opaque oblongs which absorbed light and gave out colors beautiful and dim; of a uniform even interplay of color upon all sides of me, as if the

walls were hung with tapestry of one pattern; but all I was really intensely conscious of was a seated figure. She was sitting almost profile to me, with her back to the light, which fell splendidly upon the full length of her hair, hanging quite to the floor. She was wrapped in something silk, of two shifting colors, green and copper, uncovering the neck and leaving a most beautiful arm bare to the shoulder. A maid was brushing her hair, bending low with each measured stroke. At my appearance she straightened, stopped, and stepped back. It looked really as if she sank away into the shadow; and the Spanish Woman rose and came toward me, holding out her hand. The colors in her gown seemed fairly alive, and whether it was really a woven pattern of copper serpents rushing through green water, or only an accident of my fancy and the twisted lights, I couldn't determine. But, looking in her face, I thought, "Oh, surely Mr. Dingley is right. It isn't that she is ill, but only that she wants to talk with me alone." Like her hand, her voice was soft and warm.

"You are very kind," she said. There was hardly a trace of accent in her speech, only a delicate precision that made it delightful. "You see, I have been sick, and am yet too weak to go out upon the street. It is why I have given you the trouble to come to me." And still keeping my hand she led me to a chair and gently, prettily pushed me into it. There was something persuasive in her very touch. Then, taking her seat again, "Maria, *prondo!*" she cried; and the maid coming forward gathered up the mass of hair, twisted it deftly into a sort of crown around her head, filling it with gold-colored hair-pins, tucked into its coil a single tuberose; then collecting the combs and brushes went softly out of the room.

The Spanish Woman sat there, resting her chin in her hand, looking at me with a pleasant rather smiling expression; and I thought she was a great deal less overwhelming than I had expected, though she was even more beautiful. "You have seen Mr. Montgomery?" she began. I thought it was only a question in form.

I said, "Oh, yes, I first saw him several years ago, dancing at a ball."

She gave me a keen glance. "Yes, and later than that?"

"Then, then," I stammered, for I was at a loss to know whether she knew what my evidence was to be, "then once or twice on the street, and yesterday in court."

"Well, and what do you think of him?"

"Why I—I don't know him."

She made an amused little sound in her throat. "Yet you have seen him three times. Once would have been enough. Surely you can tell me at least one thing—do you think he looks like a murderer?"

"Oh, no!" I murmured.

Her eyes never left me. "But you do not think well of him; he is perhaps repulsive to you?"

"Oh, no!" I whispered. There was a painful tightness around my heart, and my head felt on fire. It was not the Spanish Woman but I who seemed to be telling the story.

She gave a quick nod, as if my answers thus far had satisfied her. "You do not believe him to be a murderer, you do not even think him unpleasant, and yet you will go into the court and swear away his freedom—perhaps his life?"

"I said I thought he did not look like a murderer," I desperately insisted, "but I can't help—"

"I know, my child, just what you are going to say," she interrupted. "You are going to say the words they have taught you—that it is your duty, and all that! And do you not know that the law is just a great machine of rules, and that this is one of them: that you must tell whatever you have seen, no matter how unjust, no matter what harm it does? It is for that reason I do not go to the law. I come to you, who are a woman like me, and have compassion. You say you do not know this man, but you have seen him. You can not be quite blind to what he is. He has been rash and foolish, and it is true that he has made angry some very virtuous citizens"—she rolled

out the last two words with a curl of her handsome lip—"but he is a most lovable and charming boy, and the most brave! Can't you see by his face that he could not do an evil thing? He was dragged into this affair as a matter of honor; the quarrel was a fair and open one."

A joyful feeling went through me at her words—the first really kind, saving words I had heard spoken of him. I almost loved her for them; and the expectation that the next moment I was to hear the explanation of them held me, leaning forward in my chair, breathless.

She made a little imploring movement toward me with her open hands. "It would be cruel, cruel for a gentle, tender-hearted girl like you to speak such words against him!" A faint color was beginning to shine in her cheeks, and her eyes had opened wide their wonderful blacks.

"But," I cried, "if you know something in his favor why don't you go into court and tell them about it? If only you would speak to them as you do to me, I know they would believe you! They couldn't help it!"

She shot a quick glance at me, half suspicious, half fierce; but immediately it softened into a rather sad smile. "That is very gracious of you, to speak so; but about the court do not make a mistake! The words I have, the things I know, are not those that speak to the mind but to the heart. All that the lawyers take count of are the facts; and for the jury, they would be more swayed by one word a little innocent-eyed girl will say, than by the most eloquent plea I could offer. It is you who will sway this balance of justice. Do not try to escape from that responsibility. Think, think, of how, when you saw him come out of the door, he looked at you, and with his eyes implored you to be silent!"

I stared at her, terribly wrought upon by the memory she had called up of that look; astounded that she had known of it, had even been able to translate its meaning for me.

"Yes," she said, smiling, "I know all about it. And then you ran home and told them." Her voice grew very caressing. "But that was in the moment when you had lost your head. Now that you have had time to think it all over, now that you know how much it means—oh, surely, you will not

speaking again! I beg you, in human mercy, not that you plead for him, not that you tell a false story, but only as you are a woman, keep silence, keep silence!"

I listened with increasing dismay, as the hot words poured from her lips; and, with the end, a revulsion of feeling took me, a lost and bewildered sense of being completely astray. It was not to tell me anything she had called me hither—oh, quite the opposite!—it was to try to close my lips. If I hadn't been so blinded by my obstinate hopes I might have thought of this before! I might have saved myself the ordeal; for I had felt the very heart in me weaken at the picture of him her words called up.

"If I could make myself believe as you do," I said, "that what I have to tell will condemn him, even though he is innocent, I should want, myself, to die. But I can't believe, I can't think, that God can be so unjust as to let him be condemned when he is innocent!"

She let her head drop back, and laughed a little. "You will find, my child, that it is men who control the affairs of the earth; and that if you believe any such fine things of them you will be disappointed. As for the lawyers, they will convict an innocent man as merrily as they will eat their dinner, if only the popular cry is loud enough, and they can get enough of what they call their evidence against him. Do not expect any miraculous intervention on his behalf."

"I don't," I cried stoutly. "But some one must know the truth of what has really happened; and that person surely will come forward and tell what he knows before he will let Mr. Montgomery be condemned. Oh, if only I knew, nothing should keep me from saying it!"

She had drawn herself upright in her chair, her face whiter than her flower, her clenched hands resting on either arm; and now she slowly rose to her feet. Standing there she seemed fairly to tower above me, and looking down with her eyes glimmering upon me through her lashes. "What if he is guilty?" she said slowly.

The room around me grew dreamy. My head felt light. All the things I had ever believed in seemed to have fallen far, far below me, tiny and

inconsequent. I closed my hands hard around the arms of my chair. I clung to it as if it had been my last principle of faith. "I have given my word," I said, "and even if I had not, I should have to tell the truth. It is a question of honor."

She stood a moment longer with her hands still clenched and slightly raised, as if she were going to strike a blow—myself, or her own breast. Then she let them fall limp, and, lifting her shoulders with a superb little scornful motion, "Ah, I thought you were only a fool," she said. "I see, you are cold."

She turned sharply about, and crossed the room to where something which looked like a large bench stood against the wall, covered with gold-colored velvet. I saw her fling back the covering and kneel beside it, fumbling with the lid. I heard the clicking of what seemed a series of locks. At last she turned her head and spoke, "Come here!"

I rose and went slowly over to where she knelt in the shadow.

"Sit down."

I seemed involuntarily to obey those imperious words. I took the seat she indicated, a carved stool, drawn near the chest, and saw her just lifting out a long string of blue flashing stars. It was like a toy, like one of those strings you hang upon a Christmas tree, only a hundred times more brilliant. "See how pretty!" she said, and ran it through her fingers in a little blue stream; then, with an easy motion of her wrist, she tossed it around my shoulders. She put her hand down into the chest and brought out a long, long string of pearls—if pearls had ever been so large—long as the rosaries I used to string of oak balls, and dropped it over my head. I felt the great weight of it upon my neck.

"Look," she said, and taking up a velvet case, opened it, and showed me, lying on the crimson satin bed, a necklace like a wreath of light. There was no misunderstanding the preciousness of that. The shock of the realization of what they were sent the blood into my face. Her eyes laughed at me with a gleam that seemed devilish. She threw the box into my lap. She took out rings and covered my fingers with them, drops of blood, red, and brilliant

green, and rainbow colors. I couldn't seem to speak or move. I thought she must be mad.

"Here," she said, and leaning toward me, deftly pulled out the pins and took off my hat. Then in both her hands she lifted something from the chest, and, before I could stop her she had pressed it down upon my head. Then she rose. Her face was flushed; her lips parted eagerly on her gleaming teeth. She caught my hand and pulled me in front of a great mirror that hung upon the wall.

I saw reflected there a small, shrinking figure, with a white face, in a white dress, crowned with a circlet of gold, and hung with necklaces that made brightness in the shadow. I heard the Spanish Woman's voice speaking excitedly close beside my cheek.

"There is not their like in this state, in this country. Some of those have come out of the greatest houses in Spain. They will make you rich, they will make you beautiful! They are nothing to me; I will give them to you, every one, to keep for ever! Take them—take them all! And go away! Just for three little days; until the trial is over!"

I shrank from her in mere amazement. In the first moment I did not take in what she meant.

"No, but listen," she cried, catching at me, "I can make it easy for you to go. I have influence—I will help you—I will hide you! We will arrange the story."

I raised my hands to my head. Now I was choking with anger, with tears. "Do you think I would do for these, what I would not do for him?" I lifted the circlet off my head, but my hands shook so that it fell, and rolled on the floor between us, and I believe we both forgot it. "Do you suppose I don't care as much as you do? I would do anything in the world to clear him of this charge. But you don't understand—to clear him! I can't hush it and hide it. It wouldn't make it come right, and I don't believe he wants me to. I don't believe that is what he meant. I know he would hate me if I saved him with such a lie!"

She grew white. A small sharp shadow came on each side of her mouth. Her lips parted with a sort of gasp. "What do you know about saving or dying; what do you know about hating or loving? You would not lie—oh, no! You would save him—if he were innocent! Why, you child, I would save him the same if he had killed fifty! You are so precious of your little self, and your little virtue! Virtue? Pah! I love him—and that is my virtue!"

Something in the triumphant ring of her voice, in the very strength of her passion itself, for the moment made her noble. Beside her I felt myself small, mean and wretched.

It seemed to me I was in a nightmare and never should awake. I pulled the necklaces, the bracelets, the rings, off me, struggling with the tangled chains and stubborn clasps. I shook my hand free of the last jewel, and then snatching up my turban, pinned it on with trembling fingers, and all the while she stood looking silently at me. One could not tell what was behind her face. But when, at last, I had taken up the little ball of my gloves and stood before her, she spoke in a very soft voice:

"Pardon me, I have lost my wits. But you are made of a material—I do not know it—but it is not flesh and blood. Nevertheless we must not part bad friends."

She turned to the table and, pushing aside the jewels as if they had been colored glass, pulled toward her a tray, and took up a glass decanter. She poured two glasses of wine, and taking one, gracefully held it out to me. "Will you not drink to his acquittal?" she asked.

"Forgive me," I said, "if I do not drink to it. I will wish for it with all my heart. That will be the same."

"But it is not," she said, advancing, with her bright eyes fixed upon me. "To drink—that is a deed which shows the good will. The rest is but words. Come, you have spoken of great things you would do for him if only you could. Well, here is one small thing. Let me see you make good your words!" Her voice was so sweetly coaxing my hand hesitated toward the glass. Then, as she thought I was going to take it, something in the

expectant, intense look of her caught me; and a dreadful thought flashed into my mind.

I shrank back. "No," I said, "I can not!"

But she was fairly upon me with it. She was leaning over me. "Drink, yes, drink!" She thrust it upon me.

"No, no!" I cried in terror. "I will not!" I flung up my hand with the impulse to keep it off me, and struck the glass, and overturned it.

She stepped backward and set down the tray with a clang. There was no perceptible change in her face, but suddenly she had become terrible. "You shall never go out of my house," she said.

My ears wouldn't believe, my senses rejected the meaning of those words. "You would not do such a thing—you would not dare!"

She threw back her head until I could see the great column of her white throat swell, and laughed. "I tell you, my pretty little girl, I would fling away a dozen such as you for only the chance of saving him!"

I saw that she meant it—I understood how well!—I felt like a little dry stick in a river, like a leaf in the wind. I looked behind me. The windows did not open into the outer air but into a tightly closed conservatory. The sound that was struggling in my throat was a scream, but suppose it would only call in some of her creatures before Mr. Dingley should hear! I looked squarely into her face, and I am sure, in that moment, that I understood what death might mean. "I am going," I said, very quietly, and walked across the room toward the curtains.

She did not try to stop me, and every unobstructed step I took forward I thought, with increasing terror, "What is it that she means to do?" When I reached the closed curtain the grasp of her hands, which I had dreaded; was the least of my fears. The anteroom was empty, but as I passed its threshold I heard her move across the inner room, and then a bell rang, away down in the lower part of the house. There is no describing the feeling that was in

me when, with the sound of that uncanny signal in my ears, I opened the door into the grizzly maze of passageways.

I remembered that I had turned to the right in coming in, so now I turned to the left, and hurried down that narrow, unlighted way that led me directly to another door. But I remembered that and opened it and stepped through into another hall. Here were three branching ways, and it was only one of these, of course, which would bring me to the *sala* door. The others might plunge me into Heaven knew what places of the house, or what hands! There was no time to hesitate, I must choose and chance it! There was not one thing—window, furniture or color—to distinguish them. Yet in my agony of mind I gave a glance down one and two of them; and on the floor of the second, a few yards from me some small, light-colored object was lying. I ran forward and stooped. It was the blue bow that had fallen from my hair.

I picked it up with a rush of thankfulness. This was an incident in a fairy tale! It seemed an omen of safety, and as I held it in my hand I fairly ran along the passage and came at last triumphantly out into the hall, which I remembered, broad and carpeted with red.

Down the stairs I hastened, my heart going quick with the alarms of my escape, opened the door at the foot of it and came into the little entry. As I entered it I fancied a sound. It was like a step, very soft, so soft as to be hardly audible, not behind me, not on the other side of the door in front of me, but somewhere beyond the entry partition on my right. It was there, I reckoned, that one of those dark anterooms, through which we had approached the *sala*, must be. The flesh of my back was pricking, but I was almost safe. Once let me reach Mr. Dingley and I knew that somehow he would get us out. With a great effort I pulled open the heavy door into the *sala*.

"Oh, I—" I began; but then I stopped. The room was so large that it took me some moments to make sure it was empty. Mr. Dingley was not there.

I stood perfectly still in that stupendous place. Everything in me seemed to have stopped moving, too—my blood and my heart. And, in the listening pause, there came again unmistakably, soft, stealthy footsteps, sounding

beyond the heavy curtain of the door—sounding as if creatures were gathering in those dark rooms that lay between me and the outer hall.

I didn't scream. I didn't want to. I walked quite quietly across the room to one of the heavily curtained windows at the back, and pulled the hangings aside.

In front of me, not three feet from the window was the blank face of the convent wall rising straight up, higher than I could see. I looked downward. The stone pavement, which I could just make out in the gloom, must have been ten feet below. Nevertheless I had a wild thought that, if the worst came, I could at least fling myself down the narrow cleft; and in that mind I took hold of the window-frame. I had no hope that I could move it, even after I had stirred the heavy locks; but, with the pressure of all my weight against it, slowly the two sides of the casement opened out. As the dusty panes of glass swung away from before me my eye caught a singular irregularity in the surface of the wall. About on a level with the window-sill was a niche in the masonry, perhaps three feet square, and looking to be the depth of the wall itself. The back of it seemed to be made of a dark substance—darker than the bricks—through which shone twinkling glimpses of daylight.

I climbed upon the window-sill, and, taking hold of the upper edge of one of the casements, swung myself by this. I felt myself hovering an instant in mid-air. Then my feet had found the niche. I crouched, and, groping forward with one hand, grasped a stout tangle of vines. Releasing the casement I half-dragged, half-swung myself into the opening in the wall. I clung there a moment trembling, catching my breath, before I realized that the dark mass at the back of the niche was merely ivy, some of which I had grasped, tearing quite a little opening, and through this I could see a blessed glimpse of blue sky.

Putting my eyes close to this peep-hole I looked downward and saw below me the grass plots of the convent garden. A great tangle of bushes was at the foot of the wall, but in spite of that it looked a dreadful drop. I glanced over my shoulder into the room behind me, and thought I saw a shadow moving down the floor. I do not know how I turned myself in the cramped space where I knelt. All I could remember afterward was the feel

of the edge of the rough masonry under my fingers; the tearing of the ivy as my body crushed through it; the straining of my arms as I swung downward. I gave one horrified glance into the depths of the garden; then closed my eyes and let go.

CHAPTER VII

THE REFUGE

I could not tell how long a time had passed, but gradually out of complete consciousness, grew up the sense of a wretched throbbing. I thought it was my head. I opened my eyes and found I was looking straight up into the sky. I lay staring at it, it was so wonderfully soft and blue. Presently the wind swayed a green branch into my line of vision; at sight of that the query of where I was came into my mind.

I moved my head and felt the crackle of twigs at my cheek. I was lying in a mass of ivy and lemon verbena bushes, and at one side of me rose the great face of a wall. The memory of what had happened returned. I scrambled to a sitting posture. My head was so dizzy that I had to catch at the bushes to hold myself upright, and my body felt sore and shaken, but the impulse to get away from the house, whose windows overlooking the convent wall still spied upon me, carried me to my feet.

Through the shrubbery I peered at the garden beyond. There was a level green lawn, with sedate paths marching around it, but no black hooded figures were moving there in ones or twos or in solemn file, as I had been wont to see them. I walked rather uncertainly forward across the grass, across the dank and mossy paths, and into the shadowy length of the corridor. This, too, was empty, and at one end of it a little door, with a grill across it, seemed as effectually to bar me out as the Spanish Woman's house had shut me in. In my dazed state the only thing I could think of doing, to call the attention of the place to my presence, was to seize the grill in both hands and shake it with all my weakened strength. It made quite a rattling, and then I heard hurrying feet, and presently the small, startled face of a nun peered through the grating.

"I want to see the Mother Superior," I said in a trembling voice.

She looked at me sharply, and, I thought, a little as if she were frightened. "Why didn't you ring the bell?" she asked.

"The bell? What bell?" I stammered, for the only bell I could call to mind was the bell the Spanish Woman had rung. Then, as the sister appeared to be about to draw back, "Oh, please, please," I cried, "take me to the Mother Superior! I am in great trouble!"

There was a pause; then a little rustling, then a whispering of voices behind the grating, and another face, rounder and larger than the first, peered out; and a more sympathetic voice said: "Poor little creature! and her hat is all on one side!"

Then, after some further deliberation, in which one of the voices seemed to be protesting that it was afraid of something, the nun who had come first disappeared,—I could hear the sound of her feet hastening away,—and the second opened the grating and drew me in. She led me down a narrow, musty-smelling hall and into a dull little room where she made me sit down, and put my hat straight, and smoothed my hair very kindly but rather clumsily with hands like white pincushions. At last, with the timid nun following furtively at her heels, the Mother Superior came. She was a thin woman in flowing robes, with a great white sheer coif around her delicate face; and she looked at me very kindly and benevolently while I stammered out the essentials of my story—how the Spanish Woman had tried to keep me in her house, and how I got out of the window and through a hole in the wall and so down into the garden. When I came to this point in my tale, "But those windows are closed up!" cried one of the nuns. "And the wall is eight feet!" cried the other, "and there is no hole in it! It would be impossible!"

The Mother Superior shook her head at them, and said to me: "Can you tell me where you live, my child?"

I thought it odd that there should be any doubt in her mind as to that, but I eagerly gave her the number and the street. "And if you will only send for a carriage," I said, "because I am afraid I am too tired to walk, I should like to go home."

"It will be best to notify your parents," she said in a soothing voice, "and they will fetch you away."

"But there is no one there now, except Abby, and she is lame and very old. Father is not in town. He will not be back until night, and I can perfectly well go home alone!" I was beginning to feel desperate, as I thought I never should get out of the place.

She smiled and said, "Well, we will see! Give me your father's name." She looked surprised when she heard it and not quite as if she believed me, but all she said was, "Now you must lie down and rest a little while before you go out."

I protested that I did not feel tired, and indeed my anxiety to get away had wiped out all memory of my bruises. But in the end I had to follow the round-faced nun up the bare, cement stairway to another small room. It seemed strange after the luxurious glooms of the Spanish Woman's house, to be in this bare, whitewashed place, where all the light fell unobstructed through little, narrow windows placed high up in the walls. There were no mirrors here, not one, to reflect one's figure; and it was only when I had taken off my hat that I discovered what a wreck it was, crushed absurdly out of shape; and my hair was half down. The nun helped me to unwind and brush it out, and I heard her murmuring at my back, "When I was young my hair was as long as this."

And then she coaxed me to lie down on a little bed. I felt her cover me up; but when she tried to make me drink something from a glass a hideous memory sprang in my mind, and I had struck and knocked the glass out of her hand before I could think what I was doing. I heard her muttering anxiously to herself as she picked the pieces up, and then I was left alone.

With confused puzzles moving through my mind I lay there, tense, feverish, tossing, each moment expecting some one to come and tell me I could go home. Finally, I seemed at last really to be going. The only trouble was that the nuns told me I could not leave unless I left as a bride, and they had no satin and no orange flowers.

I was startled out of this fancy by voices sounding loud upon the edge of my dream. One said angrily, "In the first place you ought never to have taken her to that infernal house, either for the sake of getting evidence or any other thing." The second retorted, "Well, I wanted to keep her out of the whole business. It was you who insisted on dragging her in; and once you get into this sort of thing difficult situations often present themselves."

My eyes opened wide, and in the faint light of the floating candle flames, just above me, I saw Mr. Dingley's face. "You weren't there! Why weren't you there?" I said, sitting up.

"You see," a woman's voice that I thought was the Mother Superior's, put in, "she says and does such strange things that I dared not let her go out into the street alone."

Then, with an unutterable sense of relief, I recognized father's voice. "Yes, that was quite right. She was better here." And he sat down on the edge of the bed.

"Oh, take me home!" I cried.

He smiled, and said, with that same exasperating sort of reassurance which the Mother Superior had used, "Yes, we are going immediately."

They all made me feel as if they thought that I didn't know what I was talking about.

"Either every one is crazy," I thought, "or the whole world is in some plot against me, and they have deceived father, too." Of course my mind knew that to be ridiculous, but everything conspired to make familiar people strange. What was it Mr. Dingley had been telling father just before I returned to consciousness? "Perhaps after I am alone with father at home I can get him to listen to what I want to say," I thought.

But there were many reasons why this undertaking was much more difficult than I had supposed.

In the first place, it was Mr. Dingley who began by asking me where I had gone. He had been waiting in the front hall for me all the while, he said, and how had I got out without his seeing me? He had hunted all through the rooms on the lower floor, and not finding me, had gone back to our house, supposing I had returned; and from there had set out in search of me.

It sounded very reasonable, and I was at a loss to understand why it didn't seem probable to me. Then, when we reached home, we found a person waiting—a detective Mr. Dingley had sent for—and to him and to Mr. Dingley as well as to father, I had to tell my story. It came out in bits and snatches, with questions and answers, Mr. Dingley's all mixed in with mine; and when they did let me speak uninterruptedly I was so excited that the words came tumbling out, all confused. It seemed to me, too, that father was much more anxious over the fact that I was feverish and had a lump on my forehead, than the fact that the Spanish Woman had offered me that glass of wine, and then said I should never leave the house. But he said the thing should be investigated; and Mr. Dingley said something about making inquiries to-night; and finally all three went out together, leaving me in a wretched state of anxiety and doubt.

It seemed to me that none of them at all understood the situation, and it was so wonderfully clear, in my own mind, so enormous and astounding in its menace, that I was woefully puzzled to see how they could have missed it. But I was to learn no more until the following day, when, lying in bed, stiff and sore, with every muscle in my arms and shoulders aching, father came in with that unwontedly grave and puzzled face that the poor dear had worn so often since the beginning of the whole miserable experience.

The detective and police had been to the Spanish Woman's house, he said, and had interviewed her. She had told them quite frankly that she had indeed sent for me to come to her, and had implored me not to give the evidence which I was expected to give; because she said she fully believed it to be false—that the pistol I had thought I had seen in Johnny Montgomery's hand must have been a fancy of mine, and that she could not bear to have such damaging testimony given so recklessly. She had thought, so she said, that being a woman she might perhaps know better how to elicit the real facts of the case from me, since the men,—lawyers, police officers

and even my father,—might very well have frightened away my memory by their manner of going about it. But when I had been so obstinate, she said, she had lost her head and become angry, and that had frightened me. She said she had tried in every way to reassure me; but I had resisted all her offers of hospitality, and finally, becoming hysterical, had struck a glass of wine which she had offered me, out of her hand, and rushed out of the room, before she could stop me or even discover why I had so suddenly fled.

Mr. Dingley, father went on, had explained that he had been waiting for me, as he had said he would, down-stairs; but at the moment when I had come he had not been in the *sala*.

I could only stare at father. These didn't seem to be at all the same experiences which I had been through so short a time before; and yet, when I considered, I couldn't contradict a thing. The incidents were there, but somehow they all sounded perfectly harmless. I felt bewildered. Beside these mild-looking facts my actions seemed those of a madwoman.

Furthermore, father went on, Mr. Dingley had said that when he went through the *sala* afterward, searching for me, the windows had been closed and locked fast and the police had declared there was no hole in the convent wall, and that the wall itself would have been a difficult drop even for a man.

I pounced upon this as a tangible fact. "Then some one in the house must have closed and locked the window again; and there was a hole in the wall, or how could I have gone through it? The drop was very bad indeed, for my hat was crushed out of shape."

Poor father looked very much puzzled. "But about the wine—I don't understand. Why did you do that?"

The answer was ready at my amazed lips, but I stopped it, for now at last I began to see. I began to see how, without that peculiar intent look with which the Spanish Woman had handed me the wine-glass, nor the menacing gesture with which she had thrust it upon me, the episode of the wine that had seemed to me so threatening became a mere empty courtesy; and

indeed, separated from the sinister appearance of the moment, not one episode that had taken place in that extraordinary house which could not be explained away! I knew past any doubting, that the Spanish Woman had tried to bribe me, had tried to poison me, and failing that would have detained me by force, if I had not got out of the window. And, if I should tell him the whole adventure now while it was so burning fresh in my own mind, with all its suggestive atmosphere, its eloquent details, couldn't I make him see it as I saw it? No. The Spanish Woman had blown the magic breath of her plausibility, her ingenuity, upon the poor little substance of my true story, and had scattered it like ash. It was too much of an undertaking, even supposing it to be possible, to bring together the pieces again. And a vaguer but even more insistent voice, prompted, "Then suppose he does believe me? What will it mean to Johnny Montgomery?" It seemed to me that I had been enough of a Spartan as far as that man was considered.

I looked up at father and said, "She frightened me—the Spanish Woman frightened me, and so I ran away."

How readily he took this up, showed me it was the explanation he expected. "Yes, I know. It would be quite natural," he said soothingly. "You have been much over-wrought, and this infernal performance has thrown you into hysterics. But that wall, child—an awful drop!" He laughed a little, but I could see how much moved he was. "I hope to see that courage displayed in a worthier cause some time."

I did not tell him how worthy the cause this time had been, how were it not for that bold leap of mine there would have been no star witness for the people to-morrow.

Something in my noncommittal air seemed to touch father, and make him still look anxiously at me. "Of course, Dingley is going to have the matter investigated further. The woman will probably be arrested, if only on suspicion."

But that evening he told me that Mr. Dingley had said nothing had been elicited from her that would warrant such a thing; and though father seemed vexed and dissatisfied, he argued what could one do if there was no evidence to fasten upon?

I did not answer; I knew it would be of no use, Mr. Dingley's explanations were so reasonable. But since I had talked with father that morning a piece of news had come to me which had only succeeded in strengthening my belief in the meaning of the Spanish Woman's actions. This was brought me by Hallie, my envoy extraordinary, who had wormed it out of her mother who had got it from Mr. Ferguson.

It seemed that on Saturday, just after Hallie had left the court, the Spanish Woman had taken the witness-stand and testified that she had been Rood's wife. Mr. Ferguson said this was ridiculous to suppose, yet no one, not even Mr. Dingley, had challenged her statement. She denied there had ever been any trouble between the two men. She said she had been interested in Mr. Montgomery as a woman might be who was old enough to be his mother, but that Rood had been her husband and that she had loved and been faithful to him. She was wonderfully calm and convincing, Mr. Ferguson had said, and it looked at first as if her testimony would help the defense very much, but when Mr. Dingley's associate began cross-examining her, he seemed to turn her testimony inside out, and then it appeared that her evidence had been the worst thing possible for the prisoner. For if Rood had stood so firmly in Montgomery's way, the lawyer argued, that would give the very strongest motive for the shooting.

"Wasn't it dreadful!" Hallie exclaimed. "When she wanted so much to help him, to find she had only made things worse. Father said that when she realized how the evidence had been turned against him she grew as white as death."

From this I was able to understand better why the Spanish Woman had been willing to take the terrible chance involved in sending for me to come to her house. She must have been desperate. But, what I could not understand was, why had not Mr. Dingley challenged any of her testimony in the court? Why was it always his associate?

I had a sense of things going on under the surface which even my father did not suspect. There was plenty of news flying about in plain hearing and sight—news of mob law preached from the custom-house steps; news of the double guard at the jail so there would be no second chance of escape—all these things I heard without their being able to rouse in me any special

interest. My mind was fixed on the under-currents. I couldn't explain them to father because I didn't understand them myself, only felt them. I felt as if I and all the rest had been handled, were being handled now, by a baffling and subtle power which one could not lay hands upon, because it seemed, as if by magic, to be able to erase the evidence of its action.

There was no telling, I thought, what the Spanish Woman might not manage to do. Yes, even though I seemed to be safe; for hadn't she, in a fashion, conjured me out of Mr. Dingley's protection? Her power of persuasion—it was that which was her magic! Thus far father was the only one who seemed untouched by it. Even I had felt the pressure of it. Those appeals she had made when she had begged me to remember how Johnny Montgomery had implored me, as she said, with his look, to be silent—they had nearly undone me, and still they haunted me.

"But I don't believe he wanted it, I don't believe he would want anything so cowardly! and I know I do not want him at that price." This last reflection of mine astonished myself. What could I have meant by that? Oh, of course, that I did not want him released at that price! But was it probable that whether he were released or convicted it would be in any way for my happiness? Suppose, with her dark power, she was going to be the enchantress to-morrow. Was she again going to scatter, in some unforeseen and uncombatible way, all my testimony, and triumphantly see the prisoner acquitted? Oughtn't I to be glad that he would be free? Ah, that was the strange part of it! For it appeared to me that in such an acquittal there would be something doubly guilty; something that would send him out of the court under a deeper shadow than ever he had found in prison; something that would pledge him to her for ever. It was that last thought of all I could least endure.

CHAPTER VIII

THE LAST DAY OF THE TRIAL

After the restless crowd—craning necks; shifting feet, half-caught sentences—excited, alert, like a nervous horse dancing at a shadow, ready at the vaguest rumor to rush into a sensation, how quiet, prosaic, and even peaceful the court room seemed! That morning when we entered it was only partly filled, and in the space behind the railing the clerk of the court was scribbling, the lawyers were lolling, certain individuals looking like janitors were wandering idly about, and at his high desk the judge was writing steadily, his fine, white hand moving across the paper, his eyes now and then glancing aside as if he were thinking and paying no attention at all to what was going on in the room around him. It was reassuring in a way, as if after all nothing remarkable were going to happen.

Some women came in all in a group, among them Hallie Ferguson, her mother hanging back in her wake, as if she were being towed along in spite of herself. Hallie came over to where we sat, and began to whisper in my ear some long story of something which she was deeply absorbed in at the moment. This, too, had a habitual and pleasant feeling about it. Even when, with a black veil over her face, sweeping in folds down the length of her dress, the Spanish Woman came in, it was hard to believe that she was that same terrible creature who had stood before me only the day before yesterday telling me I should never leave her house.

She took one of the chairs which had been placed along the wall, so that instead of facing the judge's desk, she fronted the crowd, and threw her veil back. She looked white, whiter than I had ever seen her, as if she were deeply powdered, and this had the effect of a mask. I have never seen a human face so calm or so indifferently sweet as hers, and she sat as motionless as if she had been carved there. One heard the whisperings around the room, saw the nudges and the twisting of heads, but it was as if she did not see or know them. Then the interest of the room turned toward the door. With that queer instinct of a crowd, which knows before it sees, the whole room knew that the prisoner was coming before there was a glimpse of him visible.

He walked up the aisle, looking remarkably fresh and calm, as if he were here on the merest matter of business. As soon as he was seated he turned his head and glanced behind him, and I thought his eyes rested first on that

place where I had sat the week before; but they did not linger there a moment, sweeping on in a half circle around the room, glancing over me so quickly that I could not tell at all whether he had noticed me. I thought he had been looking for some one, though it couldn't have been the Spanish Woman, since she sat in plain sight on the other side of the room.

The court filled rapidly. Young men whom I knew came in, and evidently one or two of these knew Johnny Montgomery; for they walked up and into the railed inclosure where he sat, shook hands with him and stood talking with him. I could not but believe that at any time he pleased. he could rise and leave the court as freely as those others could have done. The thing going on here which they called a trial had the appearance of being just a pretense—a play.

At last one of the men who had been wandering aimlessly among the tables came forward and intoned those words which I could never understand, but which, nevertheless, always brought quick order. Then there was some exchange of words between the lawyers on the other side of the rail, now with the judge, now with one another; and now it was the clerk of the court who was speaking; and I couldn't repress the absurd feeling of surprise that they should turn their backs and mumble so, since it appeared irresistibly to me that we were an audience, and the thing was being done for our benefit.

I was trying to make out what it was that Mr. Jackson had been saying to the judge since it seemed to make for much smiling, when above the rustle and whisper I heard again the voice of the clerk calling out. There was a moment's wait. Then he raised his tone; I heard, and the words went pealing through me:

"Eleanor Fenwick, Eleanor Fenwick!"

I sat gazing pitifully at him while he chanted it out in that monotonous, singing voice.

"Ellie!" father whispered.

I rose, then realized with a sense of desertion that father was not coming with me. I would have to be alone. Feeling strange, oh very strange, with the echo of my own name still ringing in my ears, I pattered up the aisle toward that railing. As I advanced I felt as if I were walking away from all the world. I heard the movement and the stir of it behind me. In front I saw only the faces of the lawyers, of the clerk, of the judge, and these all seemed without any feeling, as if they were not people at all.

I found myself standing in front of the railing, and two men were facing me, one the clerk of the court, who was holding an open book. I had an impression that they were speaking to me, still in those monotonous, artificial voices, as if they were not saying anything with human meaning in it, and while they spoke they held their hands up, palm out, and I held mine. The next thing I knew I was mounting into the little raised and railed-in seat on the left hand of the judge's desk.

"What is it that is going to happen here?" I thought. I turned and took the chair, and found myself facing a mass,—a monster,—numberless heads and eyes, all gazing at me. A cold sensation of fear went over me, like a great wave, closing my throat, and making my head feel as if it were fitted with a cap of ice. "Oh, I can not, I can not!" I kept repeating to myself.

But, while it still seemed to me as if I should never make another sound, I heard a voice asking me my name. I recognized it as Mr. Dingley's. To see him standing up there and gravely, as if he had never seen me before, putting that question was indeed absurd. It was impossible to be frightened with such laughable procedure. He asked me my age, my place of residence, when he knew both very well, then, where had I been walking when I heard the shot; and with these questions I was familiar, having answered them all the day in the library, so it made the speaking now a little easier. And finally when he said: "Now tell the court and the gentlemen of the jury as well as you can remember exactly what you saw," my only thought was, "Oh, how often I have repeated this before! Will there never be an end of it?"

But as I began, I was aware that the judge's pen, which had been steadily scratching ever since the court had opened, had ceased; and, as I went on, all the rustling and whispering in the room fell silent. The stillness made the

place seem immense, and for a little while my voice went on through the silence like a tiny thread. And now it had stopped. I had come to the end of what I knew. It had been so small a thing to say! But the silence was so deep I dared not look around. I kept my eyes on Mr. Dingley's face, and thought it looked very strange and worn.

"Can you," he began, in his ponderous official voice, each word coming down heavily upon my ears, "Can you positively identify this person you describe with the revolver?"

I believe that my "Yes" was a movement of the lips and a bend of the head.

"Do you see him here in this court?"

The very idea of looking again at that terrible mass of heads and eyes, all watching me, like some fabulous dragon, brought back the sickening panic. But, queerly enough, when my eyes did move across them, I saw only a dark, impersonal blur, and then the one face. It appeared, in the indefiniteness around it, singularly near and distinct. He was looking at me with that gentle, sweet expression which my sick fancy hinted he never showed except when he looked at me. And he was smiling, reassuringly, as if he were encouraging me to go on; as if he would have me to understand that no great issues hung upon what I was going to say, that really what was happening was not so very momentous after all.

"He is sitting there," I said. "The third from the end of the bench, next to Mr. Jackson."

Instantly voices of officers rang all about the court, crying, "Order, order!" though there had been no sound, only a great stir, which seemed to pass across the crowd, and which the next moment might have become articulate. I sat trembling, wondering what it all meant, clasping my hands tightly in my lap. All the back of the hall was crowded with men, and most of these looked like street-loungers, unshaven and rough. They stood so close together they hid the door, and seemed to sway and press forward upon the room; and I thought, "There are a great many Mexicans in here."

Mr. Dingley asked me more questions—if I had heard voices quarreling, and I had not; which side of the street had been in sunshine, and what color dress I had worn. I told him, thinking that this was nonsense again. And then Mr. Jackson said something to the judge, Mr. Dingley sat down, and Mr. Jackson leaned on the railing, making me think of a figure on the stage, and asked me why had I gone out at that early hour of the morning, what had been my business, how had it happened that I was walking through such a street as Dupont, and how did I suppose the doors of the saloon had happened to be open so early? It was all in such a tone as made my cheeks burn with a sense of shame and indignation, though I could not see what he was getting at. Then suddenly he veered and demanded how could I tell that the handle of the revolver had been mother-of-pearl when it had fallen on the shady side of the street, how large was it exactly, how had Johnny Montgomery held it, how had he thrown it, then—quickly leaning toward me—could I produce this revolver?

At this there were sounds from the back of the court like hisses, and voices choked off on the first syllable by rappings and calls of "Order!" The small man who was Mr. Dingley's associate attorney was calling out, "I object, your Honor," very fiercely.

I felt faint, and did not know in the least what was the trouble. I began to answer that I had not touched the revolver, but the judge smiled at me, and said in his conversational voice: only now it was not indifferent but very kind, "You needn't answer that question."

So I said, "Thank you." And Mr. Jackson said, "That will do," and I noticed that some of the jurors were smiling, but quite nicely, so I didn't mind that, as I went down out of the witness-box.

"Can it be that this is all I am to do?" I thought. "Is it over?" I had expected this for so long in my days and in my dreams; and the moment had come and had passed so quickly. And here was father waiting for me.

"I shall have to testify. I will take you to the witness room and you can wait for me there," he explained to me.

"Oh, no," I said, "let me stay here. I am afraid to be alone." I suppose the thought of the Spanish Woman occurred to him, for he did not insist, but really I was not afraid of anything except of having to leave the court room before I knew what the end was to be.

By the time I had got back to my seat they had already called another witness, and such a queer little, compact, positive-looking woman, with a very gay, very best hat, was sitting in the witness-box looking, possibly as I had looked, like a queer, scared animal in a pen.

She told how on the morning of May the seventh she had been awakened by a pistol shot, had looked out of the window and seen a woman running down the street. Questioned as to this woman's personal appearance, she said she could not tell, but that she wore a white dress. In what direction did she run? The woman thought south, yes, she was sure it was south. At this I saw father shake his head, for our house was north of Mr. Rood's gambling place, and I noticed that Johnny Montgomery, who had been very calm while I was talking, had now grown nervous and jerked about in his chair.

Father was the next witness, and when he came back again he really tried to insist that we should go home. But, for the first time in my life, I stood out against him. I said I could not go until I knew at least what was going to become of Johnny Montgomery. Father gave me such a strange look, neither angry nor sad—something which I did not at all understand. He didn't urge me further, he hardly looked at me, but I was conscious of his set profile while I listened to a disagreement between Mr. Dingley's associate and Mr. Jackson. Mr. Jackson waved his arms a good deal, but the little man kept saying, "I insist, your Honor!" And finally the judge seemed to decide it in a way that pleased Mr. Dingley's man; though Mr. Dingley himself seemed not to be interested, paying no attention at all to the little man, who kept leaning over and speaking excitedly to him, and the court crier was calling for "Latovier."

A pale, indefinite-looking creature rose up from somewhere out of the crowd and shuffled slowly toward the witness-box. "There he is," I heard the whispers around me. "Why, don't you know? That's the man who was shipped off. They only got him back yesterday. He's supposed to know—"

I felt in my heart that something decisive was coming, and I had a premonition it was going to be something bad; the man appeared so wretchedly nervous as he sat there in the witness-box. He kept glancing at Johnny Montgomery, shuffling his feet and shifting his hat from hand to hand and what they got out of him came not at all as a story, but only with very many questions.

It seemed he had a little gunsmith's shop, not very well known, to which, he admitted, gentlemen such as the prisoner there, hardly ever came. But he said that on a certain night, perhaps two months ago, the prisoner and another man had come into the shop and looked a long time and bargained for the very best pistol he had in the place. It was a mother-of-pearl handle, he said, with trimmings of steel, and quite small. He had told them that it was hardly the weapon for a man to carry, and Johnny Montgomery had answered him that he did not mean to carry it long.

At this there was quite an uproar in the court, the lawyers shouting, the clerk trying to call order, and a great commotion in the press about the door. But I do not remember being afraid, only the inconvenience of having father keep his arm around my shoulders while I was trying to see how Johnny Montgomery looked. Finally quiet was restored, and then the man who had gone into the gunsmith's with Johnny testified; and after another pause, with all my expectations strained to tighter pitch than I could bear, came the general uprising which meant the court dismissed, that it was noon.

Father, looking down at me, said, "Now what do you propose to do? Are you going home with me?"

"Please," I said, "do this one thing for me. I have done everything you have wished so far. I can not endure not to know the worst or the best that can happen. I must hear the end. Let us come back here again this afternoon."

I was so excited that I didn't care what father thought of me. But all he said was, "Well!" And, "Then we will go over to the restaurant across the street for luncheon instead of going home."

It was a help not to have to step out of the excitement of the proceedings. It was that which kept me up, which carried me along. "There she is; that's the girl who saw it!" The voices whispering behind me gave me a sad stir of feeling, but it was better than being left to think. It spurred me; and the clatter of dishes and the crowd which filled the restaurant, talking all at once, yet with no distinct words audible, all helped to bridge over the chasm of the waiting. I could see Laura Burnet sitting at a near table with her thick veil raised only a little above her nose, just enough to let her drink a cup of tea. Some of father's friends and one or two of the young men I knew stopped at our table to shake hands, but very little was said, and of the trial nothing at all. For all their trying to be easy and natural, I could see that my presence embarrassed them. I could see them glancing at me as if they wondered what sort of person I could be—as though I had become something different from a girl by answering questions in the witness-box. By two o'clock we were back in court again; and how changed everything seemed! All that desultory feeling of the morning was gone, and as I looked about over the faces I could see how every one's mind was fixed on the same thing. A woman whom I did not know, jostling at my shoulder as I went in, confided to me that what she wanted was, "To hear Dingley tear the defense to pieces." I wondered if the only people in the room who didn't want to hear that were myself and the Spanish Woman.

But it was Mr. Jackson who got up first. Though I had heard all the evidence that morning it had come out in such little bits and patches with such disagreements of lawyers between, and I had myself been so in the midst of it that I had no idea as to how it would sum up; and I had been waiting anxiously to hear what this man, whom father said was such a fine lawyer, would say.

He began with a sort of oration, all about the Montgomery family, and what a fine family, they had been, how much they had done for the city! Then he talked about Johnny, and he drew a very beautiful picture of him, speaking of his great promise and fine character and then of the blow which was being struck at his brilliant career; and it was somehow awful to have to listen to it, for even supposing it were true, this seemed scarcely the time for saying it. I could see Johnny's face getting more and more set-looking

and grim, as if he hated listening to the words that were pouring over his head.

Then, in some way I couldn't follow, Mr. Jackson got from that to talking about courts and evidence, and corroborating testimony; and though for a while I couldn't make out what he was driving at, presently it began to appear to me that he was trying to prove that all the witnesses on the state's behalf had been lying. He was wonderfully clever in his way of making the testimony seem improbable. He pulled even mine to pieces, pointing out the revolver's not being where I said it had fallen. He declared there was a plot against the prisoner; that the gunsmith who had testified about the buying of the pistol had been bribed to do so; and he appealed to the feelings of humanity and justice in the jury.

He spoke beautifully. It made one's heart beat to hear just the tone of his voice, even though one couldn't quite understand what he was saying. And yet it was strange I thought that with everything he said he did not bring forward, or even try to bring forward, one single direct proof to show that Johnny Montgomery was innocent.

I was in a very confused state of mind indeed when Mr. Dingley got to his feet. Though I had never heard him speak in a court I had read in the newspapers that he was "Our golden-tongued orator," and father had been used to say that, "Dingley was a whirlwind." But now, when he rose, and turned toward the jury-box and began, his voice sounded stiff and cold, as if he brought it out with a great effort. He didn't shake his finger at the jury, as Mr. Jackson had done, nor fling out his hands, nor lift his arms in the air and bring them down as if he were bringing the world down on one's head. He simply stood there, and in a matter of fact, even voice gathered up the evidence of the different witnesses as one would beads in the hand, and strung them together; and I saw a long chain of evidence winding around Johnny Montgomery. As he went on measuring it out, for the first time I understood how heavily my testimony counted. It seemed to do away with the whole defense. In spite of Mr. Dingley the case seemed to be proving itself, and as he went on he warmed to the very sound of his own argument; his voice began to ring out more and I lost sight and memory of everything that Mr. Jackson had said.

All heads were craning toward him as he stood with his back to all of us, talking at the men in the jury-box as if they were the only people in the world. The Spanish Woman was leaning forward, her elbow on her knee, her head drooped, her hand hiding the lower part of her face, but looking out from under her eyebrows like a picture I had once seen of a prophetess. I felt that we were being wound up every moment more and more tense, and when Mr. Dingley stopped, he left us at the highest pitch possible for human beings to bear. When he sat down again he gave a quick glance behind and around him and, as for a moment it lingered on the Spanish Woman, I thought it seemed a little defiant.

I hardly realized what was happening in the room around me. The judge was reading something endless to the jury, not one word of which my ears could take. Then that sound ceased, and presently I noticed that the jurymen were leaving the room.

With the closing of the door upon them the aspect of things behind the railings changed, the judge getting up, walking restlessly back and forth in front of his platform for a minute, then going back to his writing; the clerk of the court keeping on with his, and most of the lawyers going out. Mr. Dingley passed us with just a bend of the head, and father glanced after him and made a little sound in his throat, a sort of meditative "h'm" of surprise. But the crowd kept very quiet; as the minutes passed the room grew more and more still. A sense of nervousness was over all. Every time a door opened there was a rumor that the jury was coming back.

"Well, it may be five minutes, and it may be all night," I heard Mr. Ferguson saying to father. "That pistol disappearing is going to give him a chance." Father answered, "That was a guilty man's defense, just the same."

But I seemed to have forgotten there were such things as guilt or innocence. I kept watching Johnny Montgomery, who was sitting almost alone, with his head a little bent forward, looking at the table in front of him. The light fell strongly on his face, making it almost seem to shine, and I looked at the little white seam of the scar on his cheek that had helped to identify him, at his black, brooding eyebrows, and the long lock of hair falling over his forehead, and I thought, so softly that it scarcely dared to be

a thought, "Perhaps I shall never see any of these again." I felt very quiet, as though I should never want to laugh or cry again.

I lost all track of time; but the light was falling in the room and that bright look it had given Johnny's face was turning gray, when, quite suddenly, he gave a shiver, and pulled himself up in his chair, nervously drawing in his shoulders. I looked quickly at the judge's desk and saw a man standing beside it and offering a paper. It glimmered faintly white as he held it up. I saw the judge lean over, stretching out his fine, plump hand to take it, and I heard him say: "Is this your verdict?"

Then instantly the room heard and knew. And almost at the same time I felt myself lifted to my feet and heard father saying, in a voice I should have never dared to question, "Quick, your coat!"

I fumbled wildly for the sleeves. I no longer knew what I was doing, nor why, but obeyed him blindly. I felt there was some reason for this haste, but even as I tried to follow him out it seemed the whole room had risen, and a voice somewhere in front of us was speaking—had spoken.

There was a moment of dreadful silence, and then all about me broke out quick whispers, suddenly, like a refrain. Not once but over and over, I heard them around me.

"Murder—yes, yes, murder!"

"Oh, no, guilty in the second degree."

A woman near me fainted, and I wished I could have lost consciousness so as to be rid of those terrible words, but I could not even cry. I raised my hand to my throat and pressed it there hard, because there seemed to be constriction there.

The police were thick about the door, but even they, struggling with the hoodlums who had crowded the back of the room, couldn't get a passage open, and the large sergeant of police lifted me up as if I had been a child and carried me out, and set me down on the sidewalk. There I stood in the lovely, mild twilight, looking at the familiar surroundings as if I had never

seen them before. Among the vehicles that filled the street I noticed the Spanish Woman's carriage, with its beautiful nervous horses. Father put my arm through his and said, "Do you think you can get across the street?"

"Oh, yes," I said, surprised that he should suppose I could not, since, except for that queer feeling of not having any emotions at all, I felt quite well.

He took me over to the restaurant. "But I am not hungry," I said. And father answered, "Probably not." Then, turning to the waiter, "A glass of brandy, please, and call me a carriage."

I sat down at a table near the window, and pushing aside the curtain a little, looked out at the court-house entrance on the other side of the street. In front of it a little group of men in uniform was waiting. I could see the last of the sunlight catch on their side-arms and bayonets. A good many people were coming out, and more were gathering in from Kearney Street, and up from Montgomery. The police kept shaking their clubs and trying to make them walk away. But in spite of all they could do the crowd gathered and gathered, and made a sort of narrow lane down the steps and across the sidewalk. Presently the Spanish Woman's carriage drew up just opposite this narrow way, and down the steps she came, like a queen, with her black veil sweeping over her face, stepped in and was carried quickly down the street. But as she passed I saw that her head was bent and that she was holding a handkerchief in front of her face.

I swallowed the brandy in a few gulps, scarcely knowing what it was, and kept watching the prison door, for I had the greatest longing to see Johnny Montgomery again. But presently our carriage came, so I had to go out and get into it. Just as we were making the turn across the street, I was face to face with the prison door, and at that moment they brought him out.

The guard passed close to us, and I saw his face as white and set as if he were already dead. "I have killed him," I thought, though that thought did not bring me any special feeling.

For a few moments we seemed to be caught in the crowd, the driver couldn't get forward with the horses, and I could turn my head and watch

the little escort moving off down the street.

It was after sunset now, just beginning to be dusky. The sad gray twilight was over everything, and as the figures retreated they merged into a single dark mass in the throat of the street. As this mass reached Jackson Street corner, there was an outcry. In the peaceful stillness of the evening it came with a shrill, terrifying sound. The crowd at the corner broke and scattered before a rush of horsemen. They seemed to come from all sides, and meet in the middle of the street. Then we couldn't see the guard, but shots rang out, yells, and then more firing; and the mounted men swept on across the street. Men on foot were running after them and firing. In their wake a wounded horse was rolling on the ground and there was something else sprawled away from it that might have been a man. I had just a glimpse before the crowd closed in upon it.

"Stay where you are," father said, and jumping out of the carriage, he ran up the street. Other men were running past.

The horrible thought of the vigilance committee turned me sick. I called to the driver to go forward, but, already the crowd was swarming on both sides and our progress up the street was very slow. As we drew near the place a man in the uniform of the guards, with blood running down his face, went staggering by, another man supporting him; and I heard him groaning out: "I don't see how it happened, my God, I don't see how it happened!"

Another man, a young man, with his coattails flying and his silk hat knocked over his eyes, burst out of the crowd close beside the carriage. I recognized the dandy, Jack Tracy. He was so near I could have touched him, and for one moment I forgot all about being a lady. I grasped him, by the sleeve. "Tell me, for Heaven's sake, what has happened!"

He fairly glared at me, so excited that I believe he didn't recognize me. "They've got him—the Mexicans! He's gone!"

CHAPTER IX

THE CONCEALMENT

It took a deal more running back and forth, and questioning and explaining, before I could come at any understanding of what had happened. And even when I had heard as much as any one knew it was strangely little—simply that a body of Mexican horsemen had swept out upon the guard from apparently all points of the compass, had overpowered them, leaving one dead and one of their own number wounded, and swept on. After they had gone it was discovered that the prisoner had vanished too. The cry had been that the horsemen had taken him; but some of the guard who had followed the riders a little way declared that he had not been among them, and one man insisted that he had seen Johnny Montgomery dart in at the door of one of the small houses on Jackson Street. This was immediately surrounded by police and searched, but nothing was discovered; and all the while I sat faint and trembling in the carriage, with a conviction that I ought to be horrified, and yet with an ungovernable feeling of relief. The only thoughts in my mind were, "He is safe!" and "He is free!" If only for a moment, at least it would be a moment!

Half an hour passed before the street could be cleared, and we could get across. Meanwhile in the fast-gathering dark, I kept hearing voices speaking with that stern ring they have when men are excited and talking among themselves, and hoofs of horses clattering off in the direction the Mexicans had taken.

Every moment my heart was in my mouth, lest suddenly should come the cry that Johnny Montgomery was found; but he seemed to have vanished as completely as if he had been made invisible; and presently a hateful thought crept into my mind: "What if it is the Spanish Woman who has played the enchantress?" The rumor was abroad that the sortie had been planned by some of Johnny Montgomery's friends—they were such wild fellows that their doing the thing would not seem extraordinary.

Yet the other explanation seemed so much more probable to me, so burningly evident. It came upon me with the shock of conviction, as if the

Spanish Woman herself had whispered it in my ear, and I was afraid to look at any one lest he should read my thought in my conscious face. I kept my head bent and held my trembling lips tight, glad that the dark covered my agitations.

But later, at home, sitting on the edge of my bed, I told mother all about it. I did not form the words aloud, but when I sat there looking up at her pictured face I knew she understood every idea that went through my mind. My thoughts went back over the incidents of the trial. Each little separate memory struck the same note—the attempt to get him out of prison, the attempt to make way with witnesses, and finally this successful snatching of him from the law—it was the Spanish Woman who had been responsible each time, and now it was she. Oh, I understood now why Johnny Montgomery had smiled at me as I was giving my testimony! I had thought it had been to encourage me to go on, but it must have been a mere mockery, since he knew that, no matter what story I told, he was safe.

But, had he known it? When I recalled his white, set face I doubted. Yet at any rate, even in spite of him, she had saved him. He was gone, gone to her perhaps, and I was left with the mere comfort of having done what I thought was right. It was cold comfort when every feeling in me had been outraged by the doing, and now the forlorn doubt continually stirred as to the certainty that what I had done was right, if, as the Spanish Woman said, love was a woman's only virtue.

I was horrified to find myself, without apparent reason or any evident leading up to it, with that word on my lips. Love? Why, what had that to do with me? I looked in a fright at mother, as if I expected her to answer the question; but that timid look of hers seemed to have only a reflection of my own fear in it. With a sudden feeling of weakness and helplessness I hid my face in my hands.

From that moment I began to understand what father had meant the day he had said that I would need mother's picture now. It comforted me that she was there watching me and seeming to understand, never looking angrily at me no matter what foolish or frightening things I had to tell her, and there were so many in those days that followed—dreadful days for me! The very girls, my friends, even while with round, awed eyes they admired

me for my heroic performance on the witness-stand, yet, for that very reason seemed to set me a little apart from themselves. And then the talk about the search for Johnny Montgomery, full of the cruel eagerness of men hunting a man!

The word had been that, of course, he would be retaken immediately. But the hours slipped away, and the days, and still there was no trace of him. The whole city was searched, and I discovered then that the Spanish Woman was far from escaping public suspicion. Detectives went in and out of her house, ransacking its remotest, most cunningly concealed places. She herself was closely questioned, but nothing could be elicited.

If I had needed any reassurance that she alone was responsible for Johnny's disappearance, this effacement of the means by which she had accomplished her object would have convinced me. Whatever creatures they were who had effected her purpose for her, they were apt pupils in her art of disappearance, and even those who had failed here, were still completely hers. The Mexican who had been wounded by the guard had closed his teeth and died without a word, not even a confession to the priest. The horsemen, it was said, had swept straight through the city in the direction of the Mission, and it was supposed they had disbanded there and scattered through the ranches, where it was impossible to trace them. But the belief was general that the prisoner had not gone with them, that the sortie had only been a blind for his escape in some less obvious direction, abetted by the half darkness.

That week the city was under strict surveillance and I went seldom upon the street. For after my first relief at his escape was over, I was in constant dread lest he be retaken or shot; and when I did have to be out I went shrinkingly, dreading lest I see his face, haggard and ghostly, gazing down at me from some window, or glimpse him retreating up some evil alley.

"Oh, you are too good for this!" my heart accused him. "To think of you slinking and hiding! I could forgive you anything, even killing him—yes or even wanting to kill him—but not this running away! What power is it that this woman has over you, when a little while before you seemed so brave?"

The fear that it was because he loved her went through me, the bitterest thought of all. Against it I treasured the one sentence he had spoken to me, the only words I had ever heard him speak, and the looks he had given—the gentleness which had consorted oddly with his dark face and great strength, and that first shocked, reproachful gaze which so haunted me; and then the way he had helped me, smilingly, over the hard places in my testimony against him! How that had moved me!

Yet what were a few, frail glances beside the thing he had done for the Spanish Woman? I saw her once driving upon the street. The glint of her splendid hair made a crown around her head. She leaned back in the carriage, smiling, looking happy and triumphant; and it was a strange thought that these days so dreadful for me were good days for some one else.

By the end of the week the theory that Johnny was hidden in the city was abandoned, and search was directed toward the mining-camps, whence from time to time came reports that he had been seen. But all of these turned out to be false leads, and the idle talk about it swung into just the channel that I had feared—how that of course he had been guilty since he had tried to escape and had succeeded.

Whatever chance there had been for him before, chance of appeal or chance of pardon, was gone now. It was as if he had sunk into a deep pit, out of which he would never rise. I told myself that I must not think about it, that surely he could not be anything to me any more; and yet my mind turned to nothing else but the memory of him, and seemed to fix and fasten upon the thought. I knew that father saw I brooded. Whether he knew why, I did not like to think; but he used to take me out upon long drives, among the hills across the bay, and out to the Presidio to see the military maneuvers; so that he kept me with him much of the time. And he would urge me to go about to see the girls I knew; but Hallie was the only one I went to see at all.

She had been very tactful after the first outburst of enthusiasm over me upon the witness-stand; and as soon as she understood how I hated and couldn't endure any allusions to it, had never mentioned it to me again, though I used sometimes to catch her looking at me in a way which made

me know she was sympathetic and curious; and that made a bond between us.

I was fond of the Fergusons' house itself. It had a charming garden, planted with roses, with big, blue Chinese jars at the elbows of the paths and on the porch, and a dear little upper balcony—just such a one as Leonore walks out upon in *Il Trovatore*—which overlooked the convent and its gardens. Sitting here with Hallie one late afternoon, while sunlight was still among the housetops, but with the convent garden in shadow so deep it looked like a reflection in water, I saw the procession of nuns, slim, black figures and bending heads, winding slowly through it. The sight touched me with a very melancholy yet not quite unhappy feeling.

"What would you think, Hallie," I asked, "if I should become a nun?"

"A nun!" Hallie almost shrieked. "Ellie Fenwick, what are you thinking of? Why, you would have to cut off all your lovely hair!"

"Yes," I said, "one of the sisters there told me that she had hair as long as mine when she was a girl, and yet she doesn't look unhappy now. And then everything is so peaceful over there, the garden is so quiet, and they are so calm! I think I should love to; and oh, dear, Hallie, you don't know! I am very unhappy!"

Hallie put her arm around me and said firmly, "You will do no such thing! You will come to Estrella's party to-night and forget all about convents and such hateful things! Of course, I know what the matter is; and it's very lovely and awfully romantic, but really I'm afraid that he is quite gone, dear. Don't you think you could think of some one else?"

I said I couldn't bear to, that I didn't want to go to Estrella's party, that I hated the thought of the people I would have to meet. But Hallie can be very persuading, and when I left her my resolution had weakened considerably.

"Why not go?" I argued with myself on my way home. "I will have to begin this sort of thing again sometime—that is, supposing I don't go into the convent, and I am afraid father wouldn't like me to do that. At least

while I am making up my mind about it anything will be better than brooding over this thing, which I can't help."

When I reached home I felt restless and the house seemed very small. Rather diffidently I broached the subject of Estrella's ball to father; but he was quite delighted.

"Excellent," he said, hurried off a boy to the Mendez house with word that I was coming, sent out for flowers and made a lovely little fuss about me. I tried to make myself look as pretty as possible in a pale tulle, with little rosy wreaths upon it, and the high old tortoise-shell comb, that had been mother's, in my hair. The excitement gave me more color than I had had for weeks. I thought, "Even if I am not happy, at least I can be excited."



I tried to make myself look as pretty as possible.

Father looked so tired that when he left me at the Mendez house I asked why need he come back for me, why not just send the carriage. He wouldn't hear of that, and then Señora Mendez said why shouldn't I stay at their house all night? So it was agreed, and Estrella, looking like a little dancer,

in a yellow gown sown [Transcriber's note: sewn?] with twinkling spangles, came running and hurried me up-stairs to take off my cloak.

The ball was a large one—one of those affairs that is so big it makes you feel lost. I danced, danced madly; but a forlorn conviction kept growing on me that I did not have that same joyful feeling that I could dance on air which other parties had brought me. Every young man who looked at me was not a possible sweetheart, yet more looked at me than ever did before. I had a little crowd around me, and lots of pretty things were said to me, and I was not so afraid to reply as I had been. When Señor Mendez, Estrella's father, who is fat, but dances like thistledown, took me for a turn around the room, "You are having quite a success, eh, my child?" he said. "The young men are beginning to wake up. You are coming out."

That was all very pleasing and my wits were never any too sharp at a dance, being in a dreamy and delicious state of obedience to the music and the swimming atmosphere, so that I did not keenly take note of why Laura Burnet did not return my bow. Jack Tracy took me in to supper, and fussed until he found seats for us in the big hall beyond the supper-room. It appeared he was wanting to propose to me again; and, as I was ready for anything as far as only making proposals went, I did not try to stop him. Behind us a curtain hung, the only thing between us and the ball-room, but the orchestra was still playing softly and there was hardly any one in that room, so I thought no one could overhear us.

In the midst of it, Aleppo Mendez put his head in the door and asked what had Jack done with his partner's program? Jack, not discovering it in his pocket, very much vexed at being interrupted, went to look for it with Aleppo in the supper-room, and I was left alone.

For a few moments I sat listening to the music. Then this ended with a soft chord, and on the other side of the curtain I heard the quick rustling of a girl's frock, and a girl's voice, "Just wait, I must put one more hair-pin in it or it never will stay up."

I recognized Estrella's tones. There was a little pause, and then, evidently resuming the main thread of her discourse she went on, "Of course, as I was saying, it was awfully brave of her to do it, but how could she! Why, if I

had been in such a position just thinking what it would have meant to him, I know I couldn't have made a sound!"

"Well, if I could I wouldn't have!" It was Laura speaking with great bitterness. "It wasn't as if she had to tell. She was the only one in the city who saw it. No one would have known anything if only she had held her tongue!"

"Oh, but," Estrella broke in, in a deprecating voice, "it was an awful thing he did!"

"Oh, was it?" Laura retorted scornfully, "Lots of men do the same thing and aren't so very bad; and lots more would do it if they dared. Just because he is handsomer and braver and has a higher temper than most, lots of people hate him. And because Ellie Fenwick is little and looks young, and every one was saying how pale and pathetic she looked and how convincing it was, the way she told her story, oh, I heard the talk all around the court room!—she just worked on the sympathies of the jury! It wasn't justice that convicted him! It was Ellie Fenwick!"

I sat perfectly still, grasping my cold little ice-cream plate in one hand, not hearing anything more, not even seeming to think, until I heard Jack Tracy's voice beside me.

"Good Heavens! what's the matter?" And then, calling out in absurd alarm, "Don't faint, don't faint!"

"I am not going to faint," I said, though I had a very strange feeling of floating, and his face looked a little misty to me. "I want to go home. Get me a carriage!"

"But you're ill! Let me call Estrella."

I caught hold of his sleeve. "Don't say a word to her! Don't dare, promise me!" I shook his sleeve fiercely. He looked quite scared. "Get me a carriage," I said, "and mind you don't say anything to any one until I have gone. Then you can tell Estrella that I was feeling ill and decided to go home."

CHAPTER X

A LIGHT IN THE DARK

Fortunately it was late, after midnight, and a few early ones, dragged away by their fathers and mothers, were already going; and muffled in my long cloak and lace scarf I managed to slip out in the wake of a group of these—hoping they would not notice my being alone—and into my carriage, evading Jack's insistence that he must see me home by shutting the door in his face.

As the carriage went laboring off down the dark hill I crouched in a heap on the seat. If Estrella and Laura had seized me by the shoulders and bodily thrust me out of doors I could not have felt more utterly an outcast. "Does every one feel like that about me, even my friends?" I thought.

All my life I had been taught, and had believed, that only good came of telling the truth. Well, now the opportunity to prove that had come. I had done what had been demanded of me, and every one looked upon me as though I were inhuman. Had all the laws of the universe been suddenly turned upside down? Ought my lips to have been sealed instinctively by what I saw? Ought I to have been struck dumb on the witness-stand? Was it true, the terrible injustice of Laura's words, that because of me—not alone the story I had told, but my looks, my misery, my very pity for him—he had been convicted?

I was recalled to my surroundings by the rocking of the carriage. Great rains, which had fallen lately, had left the roads gullied, and rough as the sea. The moon would not rise until after one o'clock, and what made our progress really dangerous, something had gone wrong with the carriage lights. They dwindled and went out when we were but a block on our way, and no scratching of matches would make them stay lighted for a minute.

At the foot of the hill the driver brought the horses to a halt, and informed me that the road ahead looked impassable.

I peered out of the window.

An unbuilt space was on my right, and across the dark expanse, and across the street which cut the other side of it I looked to the long roofs and walls of the convent, all a dull monotone scarcely distinguishable from the night. Only on the corner a solitary street lamp illuminated a little space of the wall and made a pool of light on the pavement beneath.

The silence was broken by the sound of voices talking—the jargon of peons, I thought—and I remembered that I was alone, and driving across a lonely part of the city. The voices seemed to be approaching down Powell Street, even now perhaps under the very convent walls. They sounded loud and jovial.

"Can't you turn into the sand-lot, and make a cross-cut to Mason Street?" I whispered to the driver.

Muttering that sand was "decenter than mud at least," he remounted his box and swung the horses about. In the mud the wheels and hoofs made only a soft "squishing" sound. We turned away into the dark, unlighted space without the approaching group being any the wiser of our presence.

But, as we went, I saw, suddenly emerging from behind the convent wall and coming out into the pool of light, the swinging serapes and great shadowy hats of the Mexicans. They were crossing Lombard, they were keeping straight on down Powell, probably for some of the North Beach resorts; but, as with voluble talk and laughter they passed the opposite curb, I noticed a singular thing—one man who dropped out of the group silently as if unobserved by his companions. He seemed to make one step from the lighted street into the shadow, and was swallowed up in it as completely as if he had plunged into a forest. He had entered that very tract that I had entered!

I put my head out of the window and spoke softly to the driver. "Stop! Keep perfectly still until he gets by."

The hackman seemed to understand what I wanted, and drew up the team, and we waited. I heard footsteps. They seemed to be coming straight toward the carriage. No, they were passing to the left of it. It was probable that this person was quite unconscious of our presence, but my heart was beating so hard it seemed to me he surely must hear it.

The footsteps stopped. I hardly dared to breathe. Then I heard the rough sound of a match; there came a small blue spurt, and suddenly in the little upthrown illumination I saw the lips holding tightly the cigarette; a little higher the flame stretched, and I saw the eyes and the black bar of the brows. I almost screamed. At the same instant he looked up and saw me.

It was just for an instant we gazed at each other thus. Then the match went out, the light of the cigarette failed, and I saw it drop like a glow-worm to the ground. I was looking again into nothing but impenetrable dark. Could it have been real—that glimpse of him—or only a picture on the night?

I leaned forward through the window and called softly into the blackness: "Come here!" I had the scared, shamed, unreal feeling of a child playing at conjurer who hopes, yet knows no miracle can happen. The shock was the greater then when, after a moment's interval, a formless bulk shadowed my window. I shrank back in the surprise and joy and fear of knowing him there.

"What can I do for you?" a voice asked, proceeding from the shadow, as courteously, as formally, as if it were speaking in the lighted ball-room I had just quitted.

"Oh, get in, get into the carriage!" I cried, for it seemed to me that all the city was spying on him, and the risk he ran was more than I could bear. He hesitated one more heart-breaking instant. Then, I thought, he drew back. I reached out blindly toward him and clasped his wrist.

My fingers were astonished at the great pulse that throbbed under them like a heart, sending a thrilling through my veins. Then I felt the downward sway of the carriage, and the sweeping of a serape over my feet; and I had released his wrist and knew he was sitting opposite me. I leaned out of the

still open door and spoke to the cabman. "Drive over to Washington Square, and then around the Square."

Extraordinary as this direction was, he made no demur, only a sort of grunt, deep in his coat-collar, and almost before I was in my seat again the wheels were turning, and I saw the arm of my otherwise indistinguishable companion move darkly against the paler square of glass as he closed the carriage door, and shut us up alone together in the dark. He himself was scarcely separable from it, but I seemed to know how hard he was looking at me.

"Where were you going?" I said.

"Nowhere that you may go. Tell me quickly what you want of me."

It was strange that he, who so long had been a speechless figure—our only communication by looks—now had become a disembodied voice, like himself, quick, strong and imperious. There were a dozen questions which, over and over in imaginary interviews, I had asked him, all my anxieties and wonders and terrors about him; why he had said those first words of his to me in the police station; why he had encouraged me so recklessly with my testimony, and then fled, and of all those other puzzling inconsistencies in his behavior. But now that my opportunity and he were both here there boiled up in my brain my latest, most bitter perplexity of all, the one that had been presented to me tonight, not a question but a confession. Before I realized what I was saying I was telling him, very incoherently, how terribly I felt about having had to give my evidence, and why it had seemed the only thing to do. "But I know you do not think so," I said. "You think it strange and cruel of me that I did not keep silent."

His voice sounded very calm, almost casual. "I think nothing of the sort. You did quite right, and I am glad there is one woman who can speak the truth."

This was utterly different from anything that I had ever expected! "But," I stammered, "from the way you looked at me first when—when you ran out at the door, and then again when, I had to tell them who you were! I thought—"

I heard the sweep of his serape as he leaned forward toward me. "I hated, for your own sake, that you should see anything so hideous. When I came out of that door and saw you there on the other side of the street, do you know what you seemed to me? You seemed to me like the reminder of everything good I had ever hoped for or believed in, looking at me across that distance, horrified at me. It was that I could not bear." His voice sounded harsh and uncertain, but it was better to hear than the even off-hand tone he had used at first.

"I hated to see you have to go through that sordid business in the police station," he said, "hated to have you dragged through the court, to think you had to touch such things, even to know that they exist. I could not forgive myself! But what are you doing here alone at this hour of the night?" He broke off suddenly. The half stern, half protecting note made my heart beat.

"I was at a ball," I stammered. "I came away suddenly because—because I couldn't bear it. I heard them talking behind the curtains. They said it was I who had convicted you."

A touch came on my hand as if it had been the point of a finger, "Believe me, that is nonsense. It was I who convicted myself."

I turned toward him. I would have given anything, in that moment, for a glimpse of his face.

"If you did anything at all toward that end," he went on steadily, "remember you only helped me toward what I really wanted to do."

I kept my eyes fixed on that space of darkness from which his voice came. "If you wanted to convict yourself then why did you try to escape?"

There was quite an interval while I waited, trembling on the brink of the mystery. When at last he spoke his voice sounded a note of reserve. The unconscious intimateness was gone.

"Whatever my motive in convicting myself has been, let me assure you it has put me so far away from you that I am hardly worthy even to speak to you. But I feared you had been troubled about giving your evidence, and I

am glad of this one chance to tell you that you have helped rather than hurt me. But now it is all over; you will not have to worry or think about it any more, for what I am going to do now will put me quite out of your sight."

He said it with such a sad, reckless gaiety, and it sounded so final that it seemed to me the world had come to an end with it; and, without any understanding of how or why it happened, I found myself crying, with my face in my hands. My ears were filled with the sound of my own sobs, but through them I could hear him begging me to stop, and, though he did not touch me, I could feel him now close beside me on the same seat and bending above me.

"The thing isn't worth it," I heard him say, "I deserve it all—everything! You are too good to waste any pity on me! But I love you for it. I have loved you since the moment I saw you staring at me as if I were the devil. I loved you when you came to the prison and pointed me out for what I was, the man with the pistol. I will never forget you."

At that I cried all the harder, but now there was a curious feeling of comfort in it. All the misery I had kept shut up in my thoughts for so many weeks seemed to be running out with my tears.

"What can I do to make you feel differently about it?" He was pleading.

"Don't do what you are going to do," I whispered, muffled up in my handkerchief.

He made a queer little sound in his throat—amusement or despair, I couldn't tell which. "Don't you know I can't stay here? Whether I shot the man or not I am forfeit. I have to go. But before I do I want to tell you one thing. You won't believe it, but here it is—I didn't shoot Rood!"

A great weight seemed to slip from my heart. I dropped my hands and looked up, and instead of darkness, there was his face above me, great, shadowy hollows for the eyes, and a soft, gray shadow for the mouth. His hat was thrown aside and I could see a faint light on his forehead.

It seemed like a miracle in the first, wondering moment. The next I understood what had happened. The quarter moon was rising, and everything was filmed with her dim silver. For a little I looked up at him quite contentedly, with a feeling of peace at my heart that I had not felt since I had first seen him. "Of course I believe you," I said. "I was only so frightened because in the court you wouldn't speak, and no one would speak for you and explain how it happened. It made it seem as if you were the one. That was why every one thought so."

He smiled rather grimly. "Yes, that is what I supposed."

"But now you will go back, you will tell them how it really happened, you will be proved innocent?"

"I can't be proved innocent," he answered harshly. "There is nothing here for me." Yet all the while he looked at me so wistfully that it was hard to understand.

"But there is I," I said. "Doesn't it matter to you that I care?"

He did not move or speak, only kept looking down at me with those dark hollows of his eyes, not a glimmer of light moved in them that I could see, and, listening to the deep come-and-go of his breathing I felt frightened.

"No, I never thought, I never dreamed such a thing was possible," he said at last, in a queer, shocked, half-awed voice. "You don't know what you are talking about, child," and he leaned forward, resting his elbow on his knee and his forehead in his hand.

"But I do know! I care terribly. All these days when I haven't known what had become of you I have been understanding it, and I am glad I said it," I put my hand on his, which rested on the seat beside me.

He shook it off, pushed it away from him. "No, don't do that," he said quickly. "Don't tell me that it is so. You are too good for it!" Then he said slowly, measuring every word as if he meant I should clearly understand: "This comes too late for me. I have gone too far in the wrong direction, and now I am going away with the Spanish Woman."

"No, no, no!" I cried vehemently. "You must not! You are too good for that!"

"No, that is all I am good for now. And she has done everything for me. The sortie at the court house was hers. She has kept me hidden in her house all these days; and, when that was searched, in the convent garden. She has chartered a lugger to take us to Mexico. It is lying out in the bay, now, on the other side of Chestnut Street Hill. She has slipped me out of her house with a group of her peons for a screen. I am going aboard now. She is coming out at dawn." He lifted his head and looked at me again, smiling a little, "And if your conscience can keep you from reporting this before eight o'clock this morning we shall be safe."

He said it in a monotonous, dull tone, as if there were no longer any question about it, as if for some reason the thing were irrevocable! And yet I couldn't understand why. There was no reason in it at all that one could see. I had the dreadful sense of fighting something invisible.

"But all that she has done for you," I insisted, "hasn't made any one happy. It has only kept making things worse and worse for you and every one else, and finally it has made you a coward."

How that made him wince! "That's not quite the fact, that's too ugly," he said quickly. "I can't let you think that; it isn't all my weakness. It is partly that I owe it to her. I am bound to do this, just as you were bound to speak the truth in court. You won't understand it I know, for to you the world is black and white, and each incident stands by itself. But as a man lives these incidents are interwoven like the links of a chain, each one depending on the others, so that sometimes what appears to be a bad thing is really the only decent thing if one knows the circumstances."

"But it is because you are only looking at a little string of wrong things, that the last one of them looks right, because it's like the others," I said. "If you go back to the big wrong that started them all and straighten it out, you will see that everything that follows will straighten itself."

He threw back his head, looking down at me with an expression I could not make out, astonished, incredulous, and half ashamed. "Out of the

mouths of babes—" I thought that was what he said very softly. Then, "And this great wrong, Miss Fenwick?"

I was conscious that somehow I had gained an advantage, and I kept my eyes upon him as if in such a fashion I could hold it tight. "You must tell them how Martin Rood really died."

"Ah, never!" The word rang with such unexpected finality that all my hope went tumbling at the sound.

"Oh, he loves her, he loves her!" I thought and my pleading became the pleading of despair. "Yes, yes, you will go back, if not for my sake then for your own, and tell them what you have told me, and the rest of it; and I know everything will come out right."

He still kept gazing at me with that puzzling expression, only now there seemed to be more of tenderness than of incredulity in it. "You seem to have great faith in things coming out right."

"Oh, but it's true," I urged. "They will, if only you will go back and face the thing."

Slowly he shook his head. "Yes, it may be true. It may even be workable in some cases, but I have got too far away from what is right ever to get back. If I should try I would only succeed in doing some one else still greater wrong—a wrong that even you, with all your awful sense of justice, could not ask me to do."

He turned from me, and sat for a little while gazing straight before him, and I looked at his stern profile set against the window glass, saw the shift of expression upon it, and knew that he was thinking. At last, turning to me again, as if there had been no interval between his words, "But this much I can do," he said. "Even if I can not quite get back to the great wrong, I will go back as far as I can in honor to set this thing right. I will give myself up—" He waited a moment, then added: "On one condition; that you will promise never to say a word of what I have told you to-night."

"But," I protested, "then how will they ever know you are innocent?"

"They won't."

"Oh, but then you will be—" I began, with a wail.

"Wait, don't speak, don't answer until I have asked you another question," and the strong touch of his hand held me quiet. "Suppose I can't make it come out right—don't you think it is better to make a strike to get as near to the right as I can, instead of going on, getting deeper and deeper into the wrong?"

"Yes," I whispered. "Don't you?"

"I don't know," he said slowly. "I only know that since I have seen you I can't go on. After being with you only for this little while, after what you have told me, I can't go to her."

We faced each other in silence. My hands were clasped tightly in my lap but my heart went out to him in gratitude and thankfulness.

Then, bending a little toward me, "Now, have I your word?" he gently asked.

I could have promised him more than my word in that moment.

He smiled. "I know that I can trust you. I have seen that you have a loyal heart; but this promise shan't cost you anything. I shall answer no questions. Now, I shall have to send a message to Señora Valencia."

"Oh, do not," I begged. "She will stop you from going back. You don't know what she is capable of; she can do anything!"

"No one can undo what you have done," he said. "She will not stop me. I must send her a word to tell her she is to go away on the lugger without me."

"But why?" I cried. "I am afraid to have you go near the house. I know I shall never see you again."

"Come, you must be brave. I am only going to write a line and slip it under the gate. We must not be cruel if we are righteous, you know."

I hardly understood his scruple, but the determination of his voice made me feel that it was right. Thus reassured the practical question rose as to what there was he could write with or upon. We should have to be quick, for already, the first pale change, which is scarcely dawn but only that fading of the deepest blue of night, was in the sky. He fumbled in all his pockets, and in the folds of his sash. We explored the seat and the floor of the carriage. In my eagerness my cloak slipped from my shoulders, and as he drew it up around me again, with nervous fingers fastening the clasps across the bosom, "What is that?" he asked suddenly.

I put my hand down and it touched a stiff little edge of paper thrusting from my girdle. I drew it out. It was my dance program. I had quite forgotten about it. One side of it was scrawled thickly with names, but most of the other side was clear, and the little white pencil was still fastened to it.

He took it from me, and holding it on the palm of his hand, "I wonder if you have any idea what thing you are asking me to do?" he said.

I did not speak, because I felt that if I opened my mouth it would be to say something weak and foolish, and when I had put the card into his hand I had seen him hesitate; so I knew that he needed all my strength. He bent his head and began to write slowly and laboriously because of the swinging of the carriage; and, letting down the window, I put my head out and addressed the driver who was hunched up like a shivering bird on his high seat.

"Drive to the Señora Valencia's house." For perhaps an hour he had been jogging us around and around the Square, and one would have thought that this order would have come upon him as a surprise. But he only turned his head slowly toward me, and then as slowly back again, with a movement that made me think of a mechanical toy, then he guided the horses' heads from Washington Square into Lombard Street.

I had sunk back into my corner and covered my eyes with my hand. "Do you want to read what I have written?" I heard Johnny ask.

I shook my head. I felt that I had made him do something terrible, as he said, I did not know how terrible. I did not even look when the carriage stopped, when I heard him getting out. But even from where I sat I could hear the beat of the brass knocker. A moment passed, with fear thick at my heart; then he was back again. He gave the direction to the driver before he got in, and the cab turned and was rattling down the street, with a speed that suggested that the hackman was at last stirred to excitement by the name of our final destination. We two looked into each other's face.

"You would better drop me at Montgomery," Johnny said.

"No," I answered, "I am going to take you all the way." He frowned. I thought he was going to object. "Let me stay with you as long as I can," I begged. "It will make it easier for me."

Still with his eyes on me his lips moved with some word. Not a sound came through but I thought he had said my name. And all the while through the cold, gray twilight we were driving downward through the city. The farther we went the more a strange and calm feeling settled upon me, and the more I forgot everything in the world but him. It seemed as if for ever we would continue to drive on together with this wonderful quietness between us.

But the carriage was drawing up. I looked at him anxiously. "What is the matter? Why are we stopping?"

His face was strange. "Don't you know? It is the prison."

He half rose, his hand was on the door, he had turned his back on me. A sudden anguish went through me, keen as physical pain. Something that was not my mind at all seemed to be acting for me. I caught hold of his arm with I don't know what impulse to pull him back.

He turned, looking at me with smiling eyes, gently unclasped my fingers, bent his head and touched them with his lips. "Don't spoil it," he said, "and remember your word."

I watched him walking down the half block to the prison door, a figure tall and solitary, and in spite of his gay Mexican trappings, with an air of somber resolution. So I saw him pass the lone, gray house fronts, and be swallowed up in the great entrance of the prison.

CHAPTER XI

THE LUGGER

As he disappeared the desire to run after him, to cry out to him, to cry out to all the ears of the court the story he had told me, rushed over me, an insane impulse. "What would that do but make everything worse, even harder for him to bear? Haven't I made things hard enough for him already?" I who had said I loved him, that I believed in his innocence, had yet virtuously urged him to go back and give himself up—to what? Why, my poor little coward mind was even afraid to name what that thing was!

The Spanish Woman had not been afraid, no, not of anything! She had risked everything that she had to save him in the best way that she knew. Was I, as she had so bitterly told me, only a creature of words with no deeds to make them good? It was all very well to say things would turn out right; but now I saw that they would not unless I made them; and how was that to be managed if he wouldn't speak, and I was in his confidence and couldn't?

I puzzled it over as my carriage rattled slowly back up Montgomery Avenue. Suddenly from what had been absolutely sterile cogitation, there sprang up the full flower of an idea. All that he had said that evening had carried the same perplexing undercurrent of a thing that he could not speak of, and always it seemed to point to the Spanish Woman. "She knows!" I thought triumphantly, "and if she knows, why, she must not go away until she has told me." The whole thing opened before me complete, unexpected, a deliverance.

I looked out of the window. Faintest, earliest dawn was already beginning. There was but one thing to do. Johnny had told me that the Spanish Woman was going aboard the lugger at dawn. I directed the driver to drive to the Black Point wharf.

He peered at me as if he thought me crazy. "That feller gave me a gold piece, ye know," he said, "or I wouldn't have taken ye as far as this."

"Go on," I said, and queerly enough I didn't feel at all afraid of the man. "Go on, and my father, Mr. Fenwick, will give you more when you take me home; and besides you are doing a service for the city."

Muttering that it was the weirdest go that he had ever struck, he clucked to the weary horses, and after a little more of cobblestones, began the struggle through the sand.

Those terrible sand-hills! We labored in them like a snail. They seemed to hang on the wheels, and to heap themselves in front of us; but the increasing light came on wings and what exact moment in all this long, gray and golden approach of the sun was to be considered dawn? At last we were over the hilltop, and floundering down the other side, the trees and gardens of houses overlooking the water front upon my left-hand, upon the other, sand and sea. Straight below, running out from the shore, was the little disused wharf. One or two Italian fishing-boats rocked in its shadow, but no vessel was in sight.

Could it be that I was too late? I thought, in an agony of uncertainty, as the carriage drew up at the pier. Thrusting my head and as much of my body as possible out of the carriage window I looked out the gray, winding channel toward the Heads. Not a sail in sight! This was encouraging, for I knew, that even starting with the grayest light, there would not have been time for the vessel to have vanished out at sea. Through the other window Chestnut Street Hill, a great rounding mass, rose bluffly out of the water, shouldering the city out of sight. Near its base tall eucalyptus trees swayed against the blue bay; and through their shifting leaves and branches I was able to make out the masts and sails of the lugger lying close under the hill. It was so well hidden that had I not been expecting to see it, I must certainly

have passed it over altogether, taking the masts for tree boles, and the furled canvas for the light acacia bark.

I drew my cloak closer around my shoulders, pulled up the carriage blinds on each side, allowing only a crack wide enough for me to look through, and settled myself to the hard task of waiting, of being at once patient and vigilant. There was not an instant when I dared relax my watch, first at this window, now at that, for who could tell by which way the Spanish Woman would approach—through the sand-hills, driven up in her carriage, or, what was more probable, on foot over the tree-guarded slopes of the hill. The blink of an eyelash might lose her!

The dull gray light that had chilled shore and sea began to take on a warmer glint. I knew the east was growing rosy. And still she did not come. The fishing-boats began to go out, and at my back I heard the first murmur of the city stirring out of sleep. Two of the fishermen, Italians, stood on the wharf and stared at my carriage curiously, but I hardly noticed them. I felt as if I were outside of all the world, and everything usual that could happen.

The wind was freshening, picking up whitecaps on the bay, and presently I noticed that the lugger had shifted her position, had moved out a little from under the lea of the hill, and I saw they were running up sail on board. One large flapping white wing, and then another, rose and spread beyond the trees. I could even hear the piping sound of the sailors' voices; and then, with a veering and a tilting, and finally with a graceful bowing motion, she stood away from the hill and began to go out to sea.

Beautiful sight that it was I looked at it with despair. I could not believe it. How had the Spanish Woman got on board without my seeing her? Could she have slipped along through the bewildering shadows and so evaded me; or had she gone on board even before I had come? but, no, that couldn't be, for then the lugger could have sailed immediately, I thought, as I stood on the step of the carriage and watched the ship carrying my last hope swing round and dip her nose deep in the channel tide.

"There is only one chance," I said to myself. "Perhaps she will have left some word for him behind her at the house."

The thought had no sooner come into my mind than it possessed me with the conviction that this must be so. For when I remembered her looks and her words to me as she talked of him I felt sure that nothing could make her quite desert him, even though he had disappointed her. The idea of her house which a little while ago had terrified me, came now like an inspiration. I did not know what I should do or say when I reached it, "But something will tell me what to do when I am there," I thought, as we retraced our way over the floundering track of the hills.

When, for the second time that morning, I found myself in front of the Spanish Woman's gate, I sprang out of the carriage without a moment's hesitation. I told the man to drive back to our house on Washington Street and tell Mr. Fenwick there that I wanted him.

There I stood in the chill daylight, shivering in my pale blue cloak, impetuously clanging the brazen lion's head upon its clapper. The outer door opened to me noiselessly as it had done before, shutting as silently after. But the garden, which had seemed picturesque and dreamy under the kind sunlight, now looked ghastly, disheveled, crumbling, as if it had been deserted for at least a hundred years. The inner door was a long time in opening. Just as I was beginning to despair it swung a cautious crack. I saw the glimmer of eyes, then immediately it was opened wide by a woman, the same maid whom I had seen brushing out the Spanish Woman's hair.

"The Señora Valencia?" I asked, feeling the mockery of my question, but pressing forward in terror lest she should not let me in. Her face had a set appearance. She looked as if she hated me, but she admitted me readily enough, closing the door quickly upon me. There, just within the threshold of the house, she held out to me a white envelope.

The outside was blank, enigmatic as the servant's face, but from it I pulled a folded sheet of paper scrawled in that bold hand, which, like all other attributes of that woman, was unforgettable. Within the paper was a card. Upon the card I read:

"You see, he understands me perfectly. He wishes to be rid of me and he has chosen the one way possible. I give you back his words."

No signature, and the card was my dance program still with its little pencil. On the back I read the farewell Johnny Montgomery had made her. It was in Spanish. "I am in love with another woman. Go away without me. I am going back."

I stood crumpling the thing in my clenched hand and the first thought came trembling in words: "Oh, cruel, cruel! How could he say it!" When I remembered her passionate face and wild will I wondered what love had done with her when first she had read that card. If a girl like Laura Burnet had fainted at a lesser shock, what had a creature like the Spanish Woman done? And then the next thought came, wiping out the memory of the first. "But there is nothing here to help Johnny Montgomery—nothing at all!"

The maid's voice broke upon my bewilderment, harsh and grating. "Will the Señorita walk up-stairs?"

I turned to her in increasing amazement. What might this mean? Was I after all to find my mystery's clew?

"The Señora's room," the woman explained, going before, and I followed up the stair.

I thought I could have told without previous knowledge that the house had been deserted by its mistress. The rooms which had been warm as with the heat of life were now deathly cold, as if they had been closed for a long time. The sweet, thick perfume which had pervaded them had failed, leaving only a dank smell of old weighty hangings; the very mysteriousness seemed to have disappeared out of the passageways and doors, every turn and unexpected opening and winding of which I remembered through sheer terror.

At the door of the private *sala* there was no pause; the maid did not knock. No need, was there, at the door of an empty room? She led me straight across the anteroom and there in front of the curtain stood the impassive major-domo, the man who had led me there the first time. He was as still as a bronze. He did not even seem to see me, but stretching out his hand gathered up the velvet folds and drew the curtain a little to one side.

There breathed upon me across the threshold, wonderfully fresh and living, like a human presence, that strong perfume of the Spanish Woman's flower. I stood fixed in astonishment. There at the far end of the room she was, the Spanish Woman herself.

She was seated, yet not as she had been the first time I had seen her, in her low combing chair; but full facing me on a great high-backed seat like a throne, her feet on a footstool, a table at her right on which her hand rested over some white thing, like a folded paper. Her gown, too dull for gold, too shining for anything else, streamed down on each side to the floor. Her whole look was as if she had dressed and seated herself and made ready for some great thing. Her head was flung back, resting against the cushion and she was looking straight at me. She did not speak. I felt she was waiting, and that I must begin.

I walked slowly across the room, not knowing what to say to her, but when I had covered half the distance some shaft of sunrise slanting into the room lighted her face with its pale reflection and I saw her eyes. They were half closed, and behind her thick, long lashes they gleamed mistily like silver. My knees doubled up under me and I went down on them in sheer weakness, for I knew that she was dead.

For a moment I could think of nothing and the room like a wheel went around me; but I kept saying, "No, no! I will not, I must not faint!" and after a few moments I moved forward, still, I think, on my knees, and looked at the paper under her hand. I was too weak to get to my feet. I reached up and took it. I looked at the Spanish Woman. I looked at the fine, firm, foreign handwriting.

"On the day of May the seventh, 1865, in the presence of John Montgomery and my peon, Victor Perez, I, Carlotta Valencia, shot and killed Martin Rood in his gambling-house on Dupont and Washington Streets. Signed, Carlotta Valencia. Victor Perez."

On the table, almost hidden by her hand, I saw the thing which I had seen once before lying in the gutter on Dupont Street—the pearl-handled revolver.

I sat there at her feet, and, looking up at her, I felt as if she had won, though now I knew it was quite the other way. But she looked so calm, so mighty, so indifferent, sitting up there above me, that she made death seem a little thing, and she herself not even wicked. Then the room swam away from me as in a dream.

The next thing I was conscious of was a broken foreign voice speaking; and I found myself covered up with a great coat lying on a sofa in the down-stairs *sala*; and there, strangely seen among its velvet and gilding, was father with his hair tossed on end and his clothes huddled upon him, and Mr. Dingley, very white and drawn, and the peon Perez, who was talking. I listened to his voice going on as if it were part of a dream.

Yes, he said, it was true there had been bad blood between the two men. First it had been the young man's debts, and then it had been the Señora. The Señora had told the young man she would give up Rood; but of course that was impossible, Perez said, with a shrug, as where was the money to come from he should like to know? But she was constantly afraid lest young Montgomery might find it out. Therefore, Perez said, when he had seen Montgomery going into Rood's place at two o'clock on the morning of the shooting he went at once to his mistress and told her. Taking Perez with her, she had hurried to the gambling-house with the purpose of somehow separating the two, and there in the bar the quarrel had taken place.

It seemed that the truth of Rood's position as "protector" to the Señora had reached Montgomery, and he had come to tax Rood with it, and Rood had told him. He told him even before the Señora's face, and Montgomery had said he was done with the whole crew of them. He was going to get out of it, he was going away. Then the Señora had clung to Montgomery, telling him she would do anything to keep him with her; and Rood had turned upon him. It was then that the Señora had shot Rood. He had been standing so near the swinging door that at the shot, to their horror, he had fallen backward through it.

Before any one could think, the peon went on, Montgomery had snatched the revolver from her, saying: "I shot him," and had rushed out into the street, and after a moment's waiting the Señora had run out, and seeing the revolver picked it up. Yes, he said, she had worn a white dress and undoubtedly it was she and not the Señorita Fenwick that the woman who had looked out the window had seen. But she had not run down the street, as this witness had said, who, like all women, only remembered what she wished to believe, but back into the gambling-house, and through there into an alley at the rear, from which they entered a house the Señora was familiar with, and remained there until the afternoon when the excitement had somewhat subsided. Then they had gone quietly back to the Señora's house.

Yes, the pistol was the Señora's. Mr. Montgomery had bought it for her a little while before. Yes, the Señora had made sure to save Mr. Montgomery and but for the Señorita Fenwick it would have been. For she had many friends, friends of power, he said. At that Mr. Dingley grew paler, and started to speak, but then he seemed to change his mind. Father looked at him, and I wondered then had the trouble been that Mr. Dingley had been one of those friends of hers. When the police came and we left the place, Mr. Dingley and father separated without a word, and father took me home alone in the carriage.

EPILOGUE

TWO YEARS

All the experiences which I had gone through with, with such apparent lack of feeling, seemed to take their revenge on me at once. For a while I was very ill, delirious with fever; and when I was myself again and the doctor would let me be talked to, the new trial was all over, and Johnny Montgomery had been acquitted a week ago. It was Hallie, all smiles, with her hands full of roses, who brought this news in to me; and in a few days,

she said, Jack Tracy had told her, Montgomery was going to leave the city. This set me wondering whether that night in the carriage and everything we had told each other then had been no more than part of my fever visions.

At last I gathered courage enough to ask father if Johnny Montgomery had inquired about me. Father looked annoyed, and said, "Yes," that he had been sending every day, and that he had asked if he might see me when I was able, but, father said, he had thought it best to refuse. That made me so miserable I began to be ill again, and the doctor was afraid I would have a relapse; so finally father gave his permission for me to see Johnny.

It was strange and unreal to think that it was actually he, gaunt and white and serious-looking, standing beside my bed and gazing down at me with timid eyes. We were both so glad to see each other we were a little afraid. The shadow of things that had happened was over us still and made us grave.

I must have looked very thin, for he took my hand as if he thought it would break and his voice was hardly above a whisper. He said whatever good came of him and whatever happiness he had hereafter he would owe to me, and that would be more than owing me his life; but father was right in saying that a man with the reputation he held in this city had no right to see or speak with me. He had only come to thank me and to say good-by. He was going away to South America.

"But father does not know you," I said, "and I am sure you are quite a different man from what any one here thinks you. And if you go away it will break my heart."

At that he looked happier and said if I felt that way he would go just the same, but it would make him want to come back again. And then, perhaps, he might be more the sort of man my father would give his daughter to. A friend of his father's, he said, had offered him an overseer's place in his mine in South America; and would I forget all about him in two years, he wanted to know?

"Two years will seem a very long time," I said, "but I shall remember you and wait for you for ever."

He smiled and said, "Those two years will be almost for ever to me, but I have bought my chance dear, and even the hope of such happiness is more than I deserve."

And then I called father and told him. He was very grave, and said to Johnny, "It depends on you; if you can show yourself a different sort of man and wipe out the record you have made for yourself, well, then, I suppose she will be of age, and it will be your own affair—but I hope she will forget you." That was absurd!

So I kissed Johnny good-by—though father didn't like that at all—for it would help to make the two years shorter.

THE END

*** END OF THE PROJECT GUTENBERG EBOOK THE OTHER SIDE
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